

Kent County Council Act, 1958

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CHAPTER vi

An Act to confer further powers on the Kent County Council and local authorities in the county of Kent in relation to lands and highways and the local government improvement health and finances of the county and for other purposes. [18th December 1958.]

WHEREAS—

(1) It is expedient that further and better provision should be made with reference to lands and highways and for the local government improvement health and finances of the administrative county of Kent and that the powers of the county council of that administrative county (hereinafter referred to as "the Council") and of the local authorities within that administrative county should be enlarged and extended as by this Act provided:

(2) It is expedient to make further provision with reference to the court of quarter sessions of the county and the officers of that court:

(3) It is expedient that the other provisions contained in this Act be enacted:

(4) The purposes of this Act cannot be effected without the authority of Parliament:

(5) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I

PRELIMINARY

Short title. 1. This Act may be cited as the Kent County Council Act 1958.

Division of Act into Parts. 2. This Act is divided into Parts as follows:—
Part I.—Preliminary.
Part II.—Lands.
Part III.—Highways.
Part IV.—Public order and safety.
Part V.—Lectures cultural activities records etc.
Part VI.—County quarter sessions.
Part VII.—Finance.
Part VIII.—Miscellaneous.
Part IX.—Protective provisions.
Part X.—General.

Incorporation of Lands Clauses Acts. 3. The Lands Clauses Acts except sections 127 to 132 and 150 and 151 of the Lands Clauses Consolidation Act 1845 (so far as such Acts are applicable for the purposes of and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act:

Provided that the bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be sufficient without the addition of the sureties mentioned in that section.

Interpretation. 4.—(1) In this Act the several words and expressions to which meanings are assigned by section 343 of the Act of 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless otherwise expressly enacted or unless the subject or context otherwise requires the following expressions have the meanings hereby respectively assigned to them:—

“ Act of 1933 ” means the Local Government Act 1933;

“ Act of 1936 ” means the Public Health Act 1936;

- “ Act of 1947 ” means the Town and Country Planning Act 1947;
- “ Act of 1950 ” means the Public Utilities Street Works Act 1950;
- “ appointed day ” has the meaning assigned to it by section 5 (The appointed day) of this Act;
- “ authorised security ” means any mortgage stock bond or other security which the Council or a local authority are for the time being authorised to grant create or issue or upon or by means of which the Council or a local authority are for the time being authorised to raise money;
- “ claimed road ” means a county road in respect of which a local authority exercise the functions of maintenance and repair pursuant to a claim which has been made or may hereafter be made under section 32 of the Local Government Act 1929;
- “ coal industry activities ” has the meaning assigned to it by section 63 of the Coal Industry Nationalisation Act 1946;
- “ commission ” means the British Transport Commission;
- “ contravention ” includes a failure to comply and “ contravene ” shall be construed accordingly;
- “ Council ” means the county council of the county;
- “ county ” means the administrative county of Kent;
- “ county fund ” means the county fund of the Council;
- “ county road ” has the same meaning as in Part III of the Local Government Act 1929;
- “ daily fine ” means a fine for each day on which an offence is continued after conviction thereof;
- “ district ” means a borough or an urban or rural district in the county;
- “ enactment ” includes an enactment in this Act or in any general or local Act and any order byelaw or regulation for the time being in force within the county or within a district;
- “ financial year ” means the period of twelve months commencing on the first day of April in any year and ending on the thirty-first day of March in the next following year;

PART I
—cont.

“ fire authority ” has the same meaning as in section 38 of the Fire Services Act 1947;

“ food ” has the same meaning as in section 135 of the Food and Drugs Act 1955;

“ general rate fund ” and “ general rate ” mean respectively the general rate fund and the general rate of a district;

“ highway authority ” means—

(a) in the case of a trunk road the Minister of Transport and Civil Aviation or with his consent the authority who are for the time being acting as his agent under the Trunk Roads Acts 1936 and 1946 with respect to that trunk road;

(b) in the case of a county road except a claimed road and in the case of any other road for the time being maintained by the Council the Council; and

(c) in the case of any other highway (not being a highway repairable by the commission) the local authority for the district in which the highway is situate;

“ hours of darkness ” means the time between half an hour after sunset and half an hour before sunrise;

“ Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 by Part V of the Act of 1947 by the Lands Tribunal Act 1949 by the Town and Country Planning Act 1954 and by this Act;

“ local authority ” means the council of a district;

“ magistrates’ court ” has the same meaning as in the Magistrates’ Courts Act 1952;

“ Minister ” means the Minister of Housing and Local Government;

“ Minister of the Crown ” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act 1946;

“ parish council ” means the parish council of a rural parish in the county;

“ police authority ” means the Kent police authority constituted by the Kent Police (Amalgamation) Order 1947;

- “ the port authority ” means the Port of London Authority;
- “ the port of Dover ” means the harbour the limits whereof are defined in section 4 (Interpretation) of the Dover Harbour Consolidation Act 1954 by reference to a signed plan;
- “ port of London ” means the port within the limits described in the First Schedule to the Port of London (Consolidation) Act 1920 as amended by section 22 of the Port of London (Various Powers) Act 1932 and section 23 of the Port of London Act 1950;
- “ public service vehicle ” has the same meaning as in section 39 of the Road Traffic Act 1956;
- “ rural district ” means a rural district in the county;
- “ rural district council ” means the council of a rural district;
- “ standing joint committee ” means the standing joint committee of the Kent quarter sessions and the Council appointed under section 30 of the Local Government Act 1888;
- “ statutory borrowing power ” means any power whether or not coupled with a duty of borrowing or continuing on loan or reborrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any enactment or sanction of any government department made or given or to be made or given by authority of any enactment but does not include the power to borrow by way of temporary loan or overdraft which is conferred by paragraph (a) of subsection (1) of section 215 of the Act of 1933;
- “ statutory security ” means any security in which trustees are for the time being authorised by law to invest trust moneys and any mortgage bond debenture debenture stock stock or other security created by a local authority as defined by section 34 of the Local Loans Act 1875 but does not include any annuities rentcharges or securities transferable by delivery;
- “ statutory undertakers ” means any company body or person authorised by any Act of Parliament or order having the force of an Act to supply electricity gas or water and the West Kent Main Sewerage Board;
- “ street ” and “ road ” have the meaning assigned to the word “ street ” in the Act of 1936;

PART I
—cont.

“ telegraphic line ” has the same meaning as in the Telegraph Act 1878;

“ trolley vehicle ” has the same meaning as in subsection (1) of section 54 of the Road Traffic Act 1956;

“ urban district ” means a borough or an urban district in the county;

“ verge ” includes land situate between two carriageways and any part of a street which is not a carriageway footway or cycle track;

“ the wardens and assistants ” means the Wardens and Assistants of Rochester Bridge in the county of Kent.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

(4) Any function conferred by this Act on a parish council shall be deemed to be a function within the meaning of section 273 of the Act of 1933.

The appointed day.

5.—(1) In this Act the expression “ the appointed day ” means such day as may be fixed by resolution of a local authority subject to and in accordance with the provisions of this section.

(2) Different days may be fixed under this section for the purpose of different provisions of this Act.

(3) The local authority shall cause to be published in a local newspaper circulating in the district notice—

(a) of the passing of any such resolution and of the day fixed thereby; and

(b) of the general effect of the provisions of this Act coming into operation as from that day;

and the day so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(4) Either—

(a) a copy of any such newspaper containing any such notice; or

(b) a photostatic or other reproduction certified by the clerk of the local authority to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice;

PART I
—cont.

shall be evidence of the publication of the notice and of the date of publication.

PART II

LANDS

6.—(1) Section 158 of the Act of 1933 shall in relation to the acquisition by the Council of land in the county be read and have effect as if the words “with the consent of and subject to any conditions imposed by the appropriate Minister” and subsection (3) of the said section were omitted therefrom.

Amendment
of section 158
of Act of 1933
in relation
to Council.

(2) Any land in the county acquired by the Council under the said section 158 after the passing of this Act shall be deemed for the purposes of this Part of this Act to be land acquired under this Act.

7.—(1) The Council may enter into and carry into effect an agreement or arrangement with the owner or occupier of any land acquired by the Council under this Act with respect to his reinstatement elsewhere.

Power to
reinstate
owners or
occupiers of
property.

(2) Any such agreement may provide for the exchange of land and for that purpose the Council may pay or receive money for equality of exchange.

8.—(1) Section 163 of the Act of 1933 shall apply to any land acquired by the Council under this Act whether or not the land is required for the purposes for which it was acquired or has since been appropriated or is being used.

Appropriation
and disposal
of land.

(2) Notwithstanding anything in subsection (1) of the said section the purpose for which the Council may appropriate any such land shall not require the approval of the Minister unless it was acquired under section 158 of the Act of 1933 as amended by section 6 (Amendment of section 158 of Act of 1933 in relation to Council) of this Act.

(3) The Council may sell lease exchange (paying or receiving or without paying or receiving money for equality of exchange) or otherwise dispose of any such land as aforesaid in such manner and for such consideration and on such terms and conditions as they think fit (whether in consideration of the execution of works or of the payment of a capital sum or of an annual rent or of paying in any other form):

Provided that the Council shall not without the consent of the Minister sell lease exchange or otherwise dispose of any such

PART II
—cont.

land at a price or rent or for a consideration of a value less than the current market value of the land but a purchaser or lessee shall not be concerned to inquire whether such consent is necessary or has been obtained.

(4) Nothing in this section shall authorise the disposal of any land by the Council whether by sale lease exchange or other disposition in breach of any trust covenant or agreement binding upon the Council.

(5) Sections 164 and 165 of the Act of 1933 shall not apply to any land acquired by the Council under this Act.

Application
of capital
money.

9. Section 166 of the Act of 1933 shall apply to capital money received by the Council in respect of the sale leasing exchange or other disposition of land under section 8 (Appropriation and disposal of land) of this Act as it applies to capital money received in respect of a transaction under section 164 or section 165 of that Act.

Undertakings
and
agreements
binding
successive
owners.

10.—(1) Every undertaking given by or to the Council to or by the owner of any legal estate in land and every agreement made between the Council and any such owner being an undertaking or agreement under seal expressed to be given or made in pursuance of this section and—

(a) given or made on the passing of plans or otherwise in connection with the land; or

(b) imposing restrictions with respect to any land at or near any corner or bend in a highway;

shall be binding not only upon the Council and any owner joining in the undertaking or agreement but also upon the successors in title of any owner so joining and any person claiming through or under them.

(2) Any such undertaking or agreement shall be treated as a local land charge for the purposes of the Land Charges Act 1925.

(3) Any person upon whom any such undertaking or agreement is binding shall be entitled to require from the Council a copy thereof without payment.

Enforcement
of restrictive
covenants
relating to
land acquired
for open
spaces etc.

11.—(1) Where the Council have either before or after the passing of this Act contributed or agreed to contribute towards or in connection with the acquisition or utilisation by the council of any other county or of any county borough or district or by any other public body (in this section referred to as an “authority”) or by any person or any trustees of land for the purpose of a public or private open space recreation or pleasure ground public walk sports ground or playing fields or towards the layout or maintenance of such land and such authority

person or trustees have or has either before or after the passing of this Act in consideration of such contribution or of an agreement to make such contribution entered into a covenant with the Council restrictive of the user of such land the Council shall have power (in addition to any other rights or remedies under the instrument containing such covenant) to enforce such covenant against such authority person or trustees and against the persons deriving title under them or him in the like manner and to the like extent as if the Council were possessed of adjacent land capable of being benefited by such covenant and as if such covenant had been expressed to be entered into for the benefit of such adjacent land.

(2) Where an authority have either before or after the passing of this Act contributed towards or in connection with the acquisition or utilisation by the Council of land for the purpose of a public or private open space recreation or pleasure ground public walk sports ground or playing fields and the Council have either before or after the passing of this Act in consideration of such contribution or of an agreement to make such contribution entered into a covenant with such authority restrictive of the user of such land such authority shall have power (in addition to any other rights or remedies under the instrument containing such covenant) to enforce such covenant against the Council and the persons deriving title under them in the like manner and to the like extent as if such authority were possessed of adjacent land capable of being benefited by such covenant and as if such covenant had been expressed to be entered into for the benefit of such adjacent land.

(3) (a) For the purposes of section 15 of the Land Charges Act 1925 any covenant referred to in this section shall be deemed to be a restriction on the user or mode of user of land or buildings enforceable by a local authority under a covenant or agreement made with them.

(b) This section shall not apply to a covenant contained in any instrument made before the twenty-seventh day of November nineteen hundred and fifty-seven unless the restrictions enforceable under such covenant were registered as local land charges within twelve months after that date.

(4) Any covenant to which this section applies shall continue to be enforceable notwithstanding that the land intended to be affected thereby may have passed to an authority acquiring the same by agreement under the Lands Clauses Acts or any Act incorporating those Acts.

(5) Nothing in this section shall deprive the Council or any authority person or trustees of any right to enforce a covenant to which this section applies which they or he would have had if this section had not been enacted.

PART II

—cont.

Compensation
may be in
land.

12.—(1) The Council when they are required by any enactment to make compensation to any person interested in any lands may by agreement with such person make such compensation wholly or partly in works land or money but in the case of land for the alienation of which the consent of any government department is required only with such consent.

(2) Nothing in this section shall release the Council or any person purchasing or acquiring any land or interest in land from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which the land or interest has been conveyed or leased to or otherwise acquired by the Council or any persons from or through whom the Council have derived title to it.

Acquisition
of derelict
land.

13.—(1) The Council may purchase by agreement land in the county which is situated within two hundred and twenty yards from the centre of any road (other than a claimed road) for which the Council are the highway authority and—

(a) which in the opinion of the Council is derelict land or land not being put to any useful purpose; and

(b) the development of which is in their opinion desirable.

(2) The Council shall not purchase land in the exercise of the powers of this section except with the consent of the local authority for the district in which the land is situated.

Development
of land.

14.—(1) The Council (with the consent of the Minister) may lay out and develop any land acquired by them under section 13 (Acquisition of derelict land) of this Act and any other land for the time being belonging to them and not required for the purpose for which it was acquired and may on any such land erect and maintain houses shops offices industrial buildings garages warehouses and other buildings and construct sewer drain pave channel and kerb streets:

Provided that nothing in this section shall apply to land acquired by the Council under section 38 or section 40 of the Act of 1947 or to land appropriated by them for the purposes for which land can be acquired under those sections:

Provided also that the powers of this subsection shall not be exercised with respect to any land in the county borough of Croydon without the consent of the mayor aldermen and burgesses of the borough of Croydon but such consent shall not be unreasonably withheld and any question whether such consent is or is not unreasonably withheld shall be determined by the Minister.

(2) The Council may use or dispose of the building or other materials of any houses or structures on any land acquired or appropriated by them which they deem it necessary or desirable to pull down.

(3) In this section the expression "industrial buildings" includes a building used or designed or suitable for use for the carrying on of any process for or incidental to any of the following purposes (namely):—

- (a) the making of any article or part of any article; or
- (b) the altering repairing ornamenting finishing cleaning washing packing or canning or adapting for sale or breaking up or demolition of any article; or
- (c) without prejudice to the foregoing paragraphs the getting dressing or preparation for sale of minerals or the extraction or preparation of oil or brine;

being a process carried on in the course of trade or business and for the purposes of this definition the expression "article" means an article of any description including a ship or vessel.

15.—(1) The Council may advance money to the purchaser or lessee of any land acquired from or leased by the Council for the purpose of enabling or assisting him to build on such land or to extend or improve any existing building thereon: Loans for erection etc. of buildings.

Provided that any such advance shall not exceed in the case of a building being a house nine-tenths or in the case of any other building three-quarters of the amount which in the opinion of the Council will be the market value of the interest of the borrower in the land after the purpose of the loan has been effected.

(2) Before any advance is made under this section its repayment shall be secured to the satisfaction of the Council by a mortgage of the land and building in respect of which the advance is to be made or of the lessee's interest therein and the instrument securing the advance shall—

- (a) fix the rate of interest to be paid being a rate not less than the rate for the time being in operation under the Small Dwellings Acquisition Acts 1899 to 1923;
- (b) fix the period within which the advance is to be repaid being a period not exceeding thirty years from the date of the advance;
- (c) require the repayment to be made either by equal instalments of principal or by an annuity of principal and interest combined;
- (d) fix the intervals at which all payments on account of principal and interest are to be made being intervals not exceeding half a year;
- (e) authorise the borrower at any of the usual quarter days after one month's notice and on paying all sums due on account of interest to repay the whole of the outstanding principal of the advance or any part thereof being one hundred pounds (or such less sum as may be provided in the said instrument or as the Council may

PART II
—cont.

- be prepared to accept) or a multiple of one hundred pounds (or of such less sum as aforesaid);
- (f) where the repayment is to be made by an annuity of principal and interest combined provide for determining the amount by which the annuity is to be reduced when a part of the advance is paid off otherwise than by way of an instalment of the annuity;
- (g) require the borrower either—
- (i) to keep the building in respect of which the advance is made insured against fire to the satisfaction of the Council and to produce to the Council when required the receipts for the premiums paid in respect of the insurance; or
 - (ii) (if the Council elect themselves to insure the said building against fire) to repay to the Council the amounts of any premiums paid by them from time to time in that behalf;
- (h) require the borrower to keep the said building in good repair.

(3) Any person acting on behalf of the Council and authorised in writing by their clerk shall on producing if so required some duly authenticated document showing his authority have power at all reasonable times to enter any building in respect of which an advance has been made under this section for the purpose of ascertaining whether the conditions of this section and of the instrument aforesaid are being complied with.

(4) In this section the expression "lessee" includes a person to whom the Council have agreed to grant a lease and the expression "lease" shall be construed accordingly.

Recovery of
deposits
under Lands
Clauses Acts.

16. Notwithstanding anything in the Lands Clauses Consolidation Act 1845 it shall be lawful for the High Court at any time not being less than twelve years after any sum has been deposited by the Council or the police authority in the bank in pursuance of the provisions of that Act to order upon application by the Council or the police authority that the money so deposited or the fund in which the sum shall have been invested together with the accumulations thereto shall be repaid or transferred to the Council or the police authority:

Provided that upon the application of any party making claim to the money deposited as aforesaid or any part thereof or to the lands in respect of which the same shall have been deposited or any part of such lands or any interest in the same the High Court may order that such money as has been repaid or transferred to the Council or the police authority under the provisions of this section or any part thereof be paid to the person making such claim and may make such other order in the premises as the court shall think fit.

PART III

HIGHWAYS

17. In this Part of this Act unless the context otherwise Interpretation requires the following expressions have the meanings hereby of Part III. respectively assigned to them:—

“ Act of 1875 ” and “ Act of 1892 ” mean respectively the Public Health Act 1875 and the Private Street Works Act 1892;

“ classified road ” has the same meaning as in the Local Government Act 1929;

“ private street ” means a street within the meaning of the Act of 1892 or a street to which section 150 of the Act of 1875 applies and includes land which is deemed to be a private street by virtue of subsection (2) of section 48 of the Act of 1947;

“ private streets authority ” means the Council and any local authority entitled to exercise the powers of section 150 of the Act of 1875 or of the Act of 1892;

“ private street works ” means works executed or authorised to be executed under the provisions of any enactment relating to private street works;

“ structure ” means a wall fence hoarding or similar erection but for the purpose of this definition the expression “ wall ” does not include a wall forming part of a permanent building;

“ transfer ” includes any disposal of land whether by way of sale lease exchange gift or otherwise and “ transfers ” shall be construed accordingly;

“ urban authority ” has the same meaning as in the Act of 1892.

A. Verges and trees

18.—(1) Subject to the provisions of this section the Council or a local authority shall have power in any street vested in them or on any land acquired by them for the purpose of the construction or improvement of any such street or for preventing the erection of buildings detrimental to the view from the street—

(a) to plant trees or shrubs or place tubs in which to grow trees or shrubs;

(b) to attach baskets for plants to posts or standards provided by the Council or local authority or with the consent of the owner thereof to any other posts or standards;

(c) to lay out grass verges or gardens;

(d) to provide guards or fences and otherwise do anything expedient for the maintenance or protection of such trees shrubs tubs baskets grass verges or gardens;

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—cont.

(e) to cut down any such tree or shrub to remove any such tub or basket and to abolish any such grass verge or garden or enlarge or diminish the area thereof;

(f) by notice to prohibit persons from entering upon or playing upon (so as to cause damage to the turf) or causing or permitting horses cattle or vehicles to enter upon any grass verge which is maintained in an ornamental condition or mown or any part of such street laid out as a garden.

(2) Any such notice as is referred to in paragraph (f) of the foregoing subsection shall be conspicuously posted on or in proximity to the grass verge or garden to which it relates and if any person contravenes a notice so posted he shall be liable to a fine not exceeding five pounds.

(3) The powers conferred by this section shall not be exercised so as to hinder the reasonable use of the street by any person entitled to the use thereof or so as to be a nuisance or injurious to the owner or occupier of any land or premises abutting on the street.

(4) Section 1 of the Roads Improvement Act 1925 shall cease to apply to highways vested in the Council or a local authority or to any such land as is referred to in subsection (1) of this section and anything done by the Council or a local authority under that section with respect to such highways or lands before the passing of this Act shall be deemed to have been done under this section.

(5) Nothing in this section shall affect the duty of the Council or a local authority to provide footpaths or grass or other margins under section 58 of the Road Traffic Act 1930.

(6) A local authority may with the consent of the Council exercise the powers conferred by this section in a street being a county road notwithstanding that the street is not vested in the local authority.

(7) Where the Council or a local authority carry out works under any enactment relating to private street works they may with the consent of the owners of premises fronting adjoining or abutting on the part of the street in which the works are carried out exercise the powers conferred by this section in that part and the expenses incurred in so doing shall be deemed part of the expenses of carrying out the works. The reference in this subsection to the consent of the owners of the said premises is a reference to the consent of the majority of them where the rateable value of the premises owned by the persons consenting is greater than the rateable value of the rest of the said premises.

19.—(1) No person (except in the execution of some act which he has lawful authority to perform) shall on any county road or in any open space to which the public have access adjacent to any county road within the county—

(a) remove or cut any turf; or

(b) pluck any bud blossom flower or leaf of any tree shrub or plant or remove cut or displace any plant if the tree shrub or plant has been planted by the person having control of the road or open space for the purpose of improving the amenities thereof and a notice stating the effect of this paragraph is conspicuously placed in the neighbourhood of the tree shrub or plant.

PART III
—cont.

Damage to
trees etc. on
highways and
in open
spaces.

(2) Any person offending against this section shall be liable to a fine not exceeding five pounds and to the payment of such further amount as appears to the court reasonable compensation for any damage so committed which last-mentioned amount shall be paid to the person having control of the road or open space.

(3) Nothing in this section shall—

(a) apply to any open space vested in or under the control of the Council a local authority a board of conservators or the National Trust for Places of Historic Interest or Natural Beauty or to any land as respects which byelaws have been made under section 90 of the National Parks and Access to the Countryside Act 1949; or

(b) affect any right of any persons authorised by any enactment to open or break up any street or road or any land for the purpose of laying making altering repairing or renewing any main pipe sluice weir sewer electric line duct substation transformer station street-box drain tramway or trolley vehicle equipment or other apparatus.

(4) In this section the expression “open space” has the same meaning as in the Open Spaces Act 1906.

20.—(1) If any tree bank slope cutting or structure or any part thereof shall fall on or across any county road so that obstruction or danger is caused or is likely to be caused to persons or vehicles using such road the highway authority may remove and pending such removal may fence light and watch the same and recover the reasonable cost of such removal fencing lighting and watching from the owner thereof.

Removal of
trees etc.
from
roads.

(2) The provisions of section 276 of the Act of 1936 (relating to the sale of certain materials) as applied by this Act shall for the purposes of this section have effect as if—

(a) instead of the local authority the section referred to the highway authority as defined in section 4 (Interpretation) of this Act; and

(b) the expression “materials” included a tree or part thereof:

PART III
—cont.

Provided that the highway authority may recover under subsection (1) of this section any balance of the cost outstanding after exercising their powers under section 276 of the Act of 1936.

B. Improvements

Variation of
width of
carriageways
and footways.

21.—(1) Subject to the provisions of this section the highway authority may vary the relative widths of the carriageway and footway or footways in any street repairable by them.

(2) At least twenty-one days before commencing any work under this section which will materially reduce the width of the carriageway or any footway of a classified road the highway authority shall send notice of the proposed work to the Minister of Transport and Civil Aviation.

(3) The highway authority shall not exercise the powers of this section in relation to so much of any street as is situate upon a bridge over any railway canal or inland navigation or upon the approaches to any such bridge without the consent in writing of the railway canal or inland navigation undertakers concerned:

Provided that such consent shall not be unreasonably withheld and any question whether or not it is unreasonably withheld shall be determined by the Minister of Transport and Civil Aviation.

Adjustment of
boundaries of
streets.

22.—(1) Subject to the provisions of this section the highway authority may enter into and carry into effect agreements with persons having a legal interest in land adjoining any street repairable by such authority for the adjustment of the boundary of the street.

(2) For the purposes of this section the highway authority—

(a) may exchange land including land forming the site of the street for other land and pay or receive money for equality of exchange; and

(b) shall be deemed to be the owners of the land forming the site of the street and shall be entitled to convey any such land in accordance with the agreement.

(3) As from the date of any such exchange as aforesaid all public rights of way over the part of any such street so exchanged shall be extinguished.

(4) No such agreement shall be entered into until the expiration of one month from the date on which notice giving particulars of the proposed agreement has been published in some local newspaper circulating in the district in which such land is situate.

(5) During the said period of one month any four ratepayers may appeal to a magistrates' court against the proposal to enter into the agreement.

(6) Nothing in this section shall be taken to dispense with the consent of any government department to any appropriation

exchange or other disposition of any land of the highway authority in any case in which the consent of that department would have been required if this Act had not been passed.

PART III
—cont.

(7) In this section the expression "ratepayer" means a person who is liable to any rate in respect of property in the district in which the land is situate entered in any valuation list and includes an occupier of such property who pays rent inclusive of rates.

23.—(1) Where in the opinion of the highway authority the retention of any improvement line or part thereof which has been prescribed in pursuance of section 33 or of section 34 of the Public Health Act 1925 is no longer necessary or desirable and should be revoked the highway authority may after consultation with the local authority by resolution revoke such line or any part thereof and such revocation shall be indicated on the improvement plan on which the improvement line is marked.

(2) Notice of such revocation shall be given to every occupier and owner of land interested in like manner as notice is required to be given under subsection (3) of the said section 33.

(3) The highway authority shall give notice of such revocation to the local registrar of the district under the Land Charges Act 1925 and the rules made thereunder and the local registrar shall thereupon cancel any entry in the register to which the notice relates.

(4) An improvement line or part thereof shall not be revoked under this section in relation to any road which at the time when the revocation is proposed is a classified road until notification of the proposed revocation has been sent to the Minister of Transport and Civil Aviation and his observations with respect thereto have been considered.

24.—(1) Where in the opinion of the highway authority the retention of any building line or part thereof which has been prescribed in pursuance of section 5 of the Roads Improvement Act 1925 is no longer necessary or desirable and should be revoked the highway authority may after consultation with the local authority by resolution revoke such line or any part thereof and such revocation shall be indicated on the deposited plan showing the building line.

(2) Notice of such revocation shall be served upon every owner occupier and lessee of land affected in like manner as notice is required to be served under subsection (2) of the said section 5.

(3) The highway authority shall give notice of such revocation to the local registrar of the district under the Land Charges Act 1925 and the rules made thereunder and the local registrar shall thereupon cancel any entry in the register to which the notice relates.

PART III
—cont.

(4) A building line or part thereof shall not be revoked under this section in relation to any road which at the time when the revocation is proposed is a classified road until notification of the proposed revocation has been sent to the Minister of Transport and Civil Aviation and his observations with respect thereto have been considered.

Repair of
boundary
roads.

25.—(1) Where the boundary between the county and any other county or county borough or the boundary between any districts in the county divides any road longitudinally the councils or authorities who but for this enactment would be responsible for the maintenance and repair of the portions of the road on each side of the boundary shall in lieu of maintaining and repairing the portion for which they are so responsible maintain and repair respectively such part or parts of the road throughout its entire width as shall be agreed upon or as failing agreement shall in the case of any road wholly within the county and in respect of which the Council are not responsible for the maintenance or repair of any portion thereof be determined by the Council on the application of either party and in any other case be determined by the Minister of Transport and Civil Aviation on the application of either party.

(2) Until notice is received by the statutory undertakers of the effect of an agreement or determination made in pursuance of this section the statutory undertakers shall for all the purposes of the Act of 1950 be entitled to treat the council or authority who but for such an agreement or determination would be responsible for the maintenance and repair of any portion of road as the appropriate street authority.

Piping etc.
of roadside
ditches.

26.—(1) A highway authority may without being required to obtain any such approval as is mentioned in section 263 of the Act of 1936 for the purpose of carrying away water from the surface of any highway repairable by the inhabitants at large wholly or partly fill up any watercourse or ditch adjoining such highway and substitute therefor a pipe drain or culvert with all necessary gullies and other means of conveying surface water into and through it upon giving to the owner or occupier thereof twenty-eight days' notice of their intention to do so and upon paying the owner or occupier for the damages which he shall sustain thereby the amount of such damages to be settled in default of agreement in accordance with the provisions of the Acquisition of Land (Assessment of Compensation) Act 1919.

(2) The highway authority shall make reasonable provision for the reception into any pipe drain or culvert laid by them under the powers of the foregoing subsection of any water (other than foul water)—

(a) which at the time of the exercise of those powers drained from the adjoining land into the watercourse or ditch; and

(b) of which notice of intention to drain into the said watercourse or ditch has been given to the highway authority by the owner or occupier before the highway authority have laid any pipe drain or culvert in substitution for the said watercourse or ditch.

(3) (a) The highway authority shall bear the reasonable expense of connecting to any pipe drain or culvert laid under the powers of subsection (1) of this section any works for discharging into the said pipe drain or culvert any water to be received therein in accordance with provision made under subsection (2) of this section and any such work of connection shall be carried out under the supervision and to the satisfaction of the highway authority.

(b) If any work of connection is permitted by the highway authority to any pipe drain or culvert laid under the powers of subsection (1) of this section for the reception of water other than water referred to in subsection (2) of this section such work of connection shall be carried out at the expense of the owner or occupier of the adjoining land from which the water drains and under the supervision and to the satisfaction of the highway authority.

(4) All pipes laid by the highway authority under the powers of subsection (1) of this section shall remain the property of the highway authority and shall be maintained by them and the highway authority shall indemnify any owner or occupier in respect of any claim against such owner or occupier arising from the existence on the land belonging to or occupied by him (as the case may be) of any pipe laid under the powers of the said subsection.

(5) (a) Where the owner or occupier of any land adjoining a highway repairable by the inhabitants at large in the county desires to lay a pipe in any ditch which adjoins and carries away water from the surface of the highway he shall give notice of his intention to the highway authority.

(b) Within twenty-one days of the receipt of such notice the highway authority may by notice specify the diameter of the pipe to be used by such person and may impose such conditions as they think necessary to secure the adequate drainage of surface water from the highway.

(c) If such person shall lay a pipe without giving the notice required by paragraph (a) of this subsection or shall lay a pipe of a diameter other than that specified or fail to comply with conditions imposed by the highway authority the highway authority may by notice require the removal of the pipe or the execution of such works as may be necessary to comply with the conditions imposed by them.

PART III
—cont.

(d) The provisions of subsection (3) of section 263 of the Act of 1936 shall apply in relation to any conditions imposed by the highway authority under this subsection with any necessary modifications including the omission of the words “ as a condition of approving plans or sections under this section ”.

(e) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given by the Council under paragraph (c) of this subsection as they apply in relation to the notices mentioned in subsection (1) of that section.

(6) This section shall not apply to a ditch vested in a highway authority.

(7) The powers of subsection (1) of this section shall not be exercised without the consent of the commission in relation to any ditch vested in the commission and used by them for the purpose of their railway or canal undertaking and subsection (5) of this section shall not apply to any such ditch :

Provided that the consent of the commission under this subsection shall not be unreasonably withheld and any question as to whether such consent is unreasonably withheld shall be determined by arbitration.

(8) In relation to the execution of any works by the highway authority in pursuance of the powers of subsection (1) of this section in any land adjoining a highway being controlled land within the meaning of the Act of 1950 Part II of the Act of 1950 shall have effect as if after the words “ tunnelling or boring under the street ” there were inserted the words “ or under controlled land abutting on the street ”.

Guard rails
in streets

27.—(1) So much of section 149 of the Public Health Act 1875 as relates to fences and posts for the safety of foot-passengers in streets repairable by the inhabitants at large shall extend and apply to any street in a rural district and for the purposes of such extension and application the Council shall be deemed to be an urban authority.

(2) The powers of this section shall not be exercised without the consent of the undertakers or board concerned—

(a) in a street belonging to or repairable by any transport undertakers and forming the approach to a station dock wharf or depot of those undertakers; or

(b) so as to obstruct or interfere with the access to or exit from any colliery or other premises belonging to the National Coal Board and held by them for the purposes of coal industry activities or to or from a station dock wharf or depot of any transport undertakers:

Provided that such consent under this subsection shall not be unreasonably withheld and any question whether it is unreasonably withheld shall be determined by the Minister of Transport and Civil Aviation.

PART III
—cont.

(3) In this section the expression "transport undertakers" means any railway dock canal inland navigation or passenger road transport undertakers.

C. Stopping up

28.—(1) Subject to the provisions of this section a magistrates' court—

Stopping up
and diversion
of highways.

- (a) if satisfied on the application of the highway authority that a highway repairable by the inhabitants at large within the county is unnecessary may by order authorise the stopping up thereof; and
- (b) if so satisfied that such a highway can be diverted so as to make it nearer or more commodious to the public may by order authorise it to be so diverted.

(2) An order under this section—

- (a) may provide for the stopping up or diversion of such a highway for the purposes of all traffic or subject to the reservation of a bridle-way or footway;
- (b) may be made with respect to any part of such a highway;
- (c) may be made with respect to two or more such highways or parts of highways which are connected with each other;

and in relation to any order in respect of a part of such a highway or two or more such highways or parts of highways any reference in the subsequent provisions of this section to a highway shall be construed as a reference to that part or to those highways or parts of highways (as the case may be).

(3) No order shall be made under this section with respect to a trunk road or a public path within the meaning of Part IV of the National Parks and Access to the Countryside Act 1949.

(4) No order shall be made under this section unless the court is satisfied that—

- (a) notice of the intention to apply for the order specifying the time and place at which the application is to be made and the terms of the order applied for (embodying or accompanied by a plan showing the effect of the order) has at least twenty-eight days before the date on which

PART III
—cont.

the application is made been served on the local planning authority on the statutory undertakers in whose area or limits of supply the highway is situate and on the local authority and parish council concerned and on the owners or reputed owners and the occupiers of all land abutting on the highway and also when the application relates to a classified road on the Minister of Transport and Civil Aviation; and

(b) a similar notice (except that there may be substituted for the plan a statement of the place where the plan can be inspected at all reasonable hours without payment)—

(i) has been inserted once at least in each of four successive weeks in a local newspaper circulating in the area in which the highway to which the application relates is situated; and

(ii) has during at least twenty-eight days been exhibited in such manner and in such positions on or near the highway as may be reasonably sufficient for notifying persons using the highway of the application.

(5) No order under this section authorising the diversion of a highway—

(a) shall be made unless the written consent of the local planning authority and of every person having a legal interest in the land over which the highway is to be diverted is produced to and deposited with the court;

(b) shall authorise the stopping up of any part of the highway until the new part to be substituted for the part stopped up has been completed to the satisfaction of two justices of the peace and a certificate to that effect signed by them has been transmitted by their clerk to the clerk of the peace of the county or borough as may be appropriate.

(6) On the hearing of the application the highway authority the local planning authority and the local authority and parish council concerned and any person who is interested in land abutting on or served by the highway or uses the highway or is otherwise aggrieved shall have a right to be heard.

(7) An appeal against a decision of a magistrates' court under this section may be brought to quarter sessions by any person (including any authority or council) who was entitled under the last foregoing subsection to be and was or claimed to be heard on the application and for the purposes of the provisions of the Summary Jurisdiction Act 1879 and of the Magistrates' Courts Act 1952 with respect to appeals to quarter sessions where more

than two persons were heard or claimed to be heard in opposition to the application it shall be sufficient if a notice of appeal against a refusal to make an order upon that application is served upon any two of those persons in addition to the clerk of the court but without prejudice to the right of any of those persons to appear as respondents to the appeal.

PART III
—cont.

(8) Every order made under this section—

(a) shall have annexed thereto a plan signed by the chairman of the court; and

(b) shall be transmitted by the clerk of the court to the clerk of the peace of the county or borough as may be appropriate together with any written consents produced to the court under subsection (5) of this section;

and the said clerk of the peace shall enrol any documents so transmitted to him and any certificates transmitted to him under subsection (5) of this section among the records of quarter sessions.

D. Erections etc. in highways

29.—(1) Where the forecourt of any premises abutting upon a county road (not being a claimed road) in a district is unfenced and is habitually used or is open to use by the public as part of the footway of such road the highway authority may by notice require the owner or occupier of the forecourt to carry out such work as may be necessary to make good any want of repair to the forecourt or to remove any source of danger to persons using the same.

Maintenance
of forecourts
to which
public have
access.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section:

Provided that—

(a) for the purposes of paragraph (c) of subsection (3) of the said section 290 if the owner or occupier of a forecourt in respect of which a notice has been served under subsection (1) of this section elects to fence the forecourt and informs the highway authority of his intention to do so the effective fencing of the forecourt so as to prevent its use by the public shall be a reasonable alternative work;

(b) the highway authority may remit in whole or in part as they may think fit the amount of any expenses incurred by them in executing works under subsection (6) of the said section 290.

(3) The powers of this section shall be exercisable in relation to the forecourt of any premises being premises in respect of which a justices' licence for the sale of intoxicating liquor for consumption

PART III
—cont.

on the premises is in force only in respect of so much of such forecourt as is used solely by persons proceeding on foot either as part of the footway or for the purpose of access to the premises.

Fencing of
forecourts.

30.—(1) Where the forecourt of any premises abutting on a county road (not being a claimed road) in the county or any steps or projection or goods (whether for sale or not) placed in any such forecourt is or are a source of danger obstruction or inconvenience to the public the local authority may by notice require the owner or occupier of the premises to fence the forecourt from such road.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

Milk stands
in roads.

31.—(1) Any person with the consent of the highway authority may in proper and convenient situations in any county road (not being a claimed road) or roadside waste thereof provide stands for milk churns and containers:

Provided that the consent of the highway authority shall not be given to the provision of any stand in any such road or roadside waste thereof in such a situation as to obstruct an existing access to any premises abutting on such road.

(2) In giving their consent under this section the highway authority may attach thereto such terms and conditions as they think fit.

(3) Any person who without the consent of the highway authority provides stands for milk churns and containers in any such road or roadside waste thereof shall be guilty of an offence and shall be liable to a fine not exceeding five pounds and the highway authority may themselves remove the said stands in respect of which the offence has been committed and recover the expense of so doing from the person guilty of the offence.

As to direction
posts relating
to rights
of way.

32.—(1) Any rural district council or parish council may erect and maintain direction posts of such size and type as may be approved by the Council in or adjacent to public footpaths (not being footpaths at the side of a highway repairable by the inhabitants at large) and bridle-paths with the consent of the owner in fee simple of the land in which it is proposed to erect the same and of any person having the control or management of such land.

(2) The exercise of the powers conferred by this section shall be subject to the provisions of the Road Traffic Acts 1930 to 1956 and to any regulations made or any general or other directions given by the Minister of Transport and Civil Aviation in pursuance of the said provisions.

33.—(1) The owner or occupier of any premises situated under or abutting on a pavement forming part of a county road (not being a claimed road) in the county may with the consent of the highway authority provide—

PART III
—cont.

Pavement
lights
ventilators
pipes etc.

(a) means for the admission of light or air to the premises through the pavement;

(b) pipes for conveying oil for use or storage on such premises; or

(c) manholes in such pavement.

(2) In giving their consent under this section the highway authority may attach thereto such terms and conditions as they think fit and such terms and conditions shall be binding on successive owners and occupiers of the premises and shall be treated as a local land charge for the purposes of the Land Charges Act 1925.

(3) The giving of consent by the highway authority shall not relieve the owner or occupier of the premises from any liability to any statutory undertakers to which he would have been subject if this section had not been enacted.

(4) Anything done before the passing of this Act which would have been lawfully done under this section if done after the passing thereof is hereby ratified.

E. Protection of highways

34. The provisions of section 4 of the Roads Improvement Act 1925 in their application to the Council shall have effect as if—

Prevention of
obstruction
to view at
corners.

(1) in subsection (1) of that section there were inserted after the words "highway maintainable by him or them respectively" the words "or at any junction of another road with such highway";

(2) in paragraph (a) of subsection (1) of that section there were inserted after the words "fence or hedge" the words "or other erection whether similar to the foregoing or not (not being or forming part of the structure of a permanent edifice or an advertisement to which regulations made under section 31 of the Act of 1947 for the time being apply)"; and

(3) in paragraph (b) of subsection (9) of that section there were inserted the words "or other erection" after the word "wall" wherever that word occurs.

35.—(1) Every person intending to build or take down any building or to alter or repair the outward part of any building in or abutting on any county road (not being a claimed road) in the county shall give notice of his intention to the highway

Hoards to be
set up during
building
operations.

PART III
—cont.

authority not less than seven days before commencing the intended work and shall if required by the highway authority—

- (a) before beginning the same cause close-boarded hoards or fences to be put up to the satisfaction of the highway authority in order to separate the building from such road;
- (b) make a convenient covered platform and handrail to serve as a footway for passengers outside such hoard or fence;
- (c) maintain such hoard or fence with such platform and handrail as aforesaid in good condition to the satisfaction of the highway authority during such time as they may require and cause the same to be sufficiently lighted during the hours of darkness; and
- (d) remove such hoard or fence with such platform and handrail as aforesaid when required by the highway authority.

(2) Any person aggrieved by a requirement of the highway authority under the preceding subsection may appeal to a magistrates' court.

(3) Any person who contravenes the provisions of this section shall be liable to a fine not exceeding five pounds and to a daily fine not exceeding forty shillings.

(4) The provisions of section 80 of the Towns Improvement Clauses Act 1847 and of section 34 of the Public Health Acts Amendment Act 1890 shall not apply to any building operations in respect of which the highway authority have made requirements under this section.

Licence to
erect
scaffolding.

36.—(1) As from the appointed day in any district it shall not be lawful for any person in connection with any building operations or work of demolition or in connection with the alteration repair maintenance or cleansing of the exterior of any building to erect or place or cause to be erected or placed any scaffolding obstruction or projection (each of which is hereinafter in this section referred to as "scaffolding") in upon or over any county road (not being a claimed road) in that district unless he has previously obtained a licence from the highway authority or to do any such act as aforesaid except in accordance with such terms and conditions as may be laid down in the licence granted to him:

Provided that the highway authority shall only be entitled to refuse a licence on the grounds that the scaffolding would cause an avoidable or unreasonable obstruction of such road.

(2) Any scaffolding erected under a licence granted under this section shall be sufficiently lighted during the hours of darkness:

Provided that this subsection shall not apply to a scaffolding projecting over the footway of a road but not over the carriageway if no part thereof is less than eight feet above the level of the footway measured vertically.

(3) Any person offending against the provisions of this section or contravening the terms or conditions of any licence granted to him shall be liable for every such offence to a fine not exceeding five pounds and to a daily fine not exceeding forty shillings.

(4) Any person aggrieved by the refusal of a highway authority to grant a licence under this section or by the terms or conditions laid down in any such licence may appeal to a magistrates' court.

(5) No licence shall be required under this section in respect of any scaffolding erected or placed by the commission for the purpose of constructing reconstructing or maintaining any works in pursuance of their statutory powers.

37.—(1) After the passing of this Act no part of any building (including the foundations) shall except with the consent of the local authority and (where the local authority is not the highway authority) with the approval of the highway authority be constructed so as to extend under the footway of any county road in the county at a less depth than six feet below the surface of such footway. Restriction on buildings under footways.

(2) The giving of consent by the local authority shall not relieve the owner or occupier of the building from any liability to any statutory undertakers to which he would have been subject if this section had not been enacted.

(3) Any person aggrieved by the withholding of a consent under the preceding subsection may appeal to a magistrates' court.

(4) Any person who contravenes the provisions of this section shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding forty shillings.

(5) Nothing in this section shall extend or apply to the construction of any building (not being a house or building to be used as offices) by any statutory undertakers or railway dock canal or inland navigation undertakers in the exercise of their statutory powers.

38.—(1) Where in any county road (not being a claimed road) any danger or obstruction is caused or is likely to be caused to persons or vehicles using such road by reason of the erection thereon or thereover of any hoarding or scaffolding or the deposit thereon or therein of any material or of the presence thereon or therein of any defective gully grid grating manhole or other cover step area grate or other fitting or structure of whatsoever Fencing and lighting of obstructions in highways.

PART III
—cont.

character or description (all of which are in this section included in the expression “defective fitting or structure”) the surveyor to the highway authority may cause proper boards or fences to be put up for the protection of persons or vehicles and may cause such hoarding or scaffolding or such boards or fences to be lighted during the hours of darkness.

(2) Any expenses reasonably incurred by the highway authority in erecting or removing any such board or fence or in lighting any such hoarding scaffolding board or fence shall be recoverable from the owner of such hoarding scaffolding or material or of the defective fitting or structure or from the person or persons responsible for the erection of the hoarding or structure or for the deposit of the material on over or in the road or for the condition of the defective fitting or structure.

(3) The provisions of this section shall not apply in cases where there is a duty to secure the observance of the requirements of paragraphs (a) to (e) of subsection (1) of section 8 of the Act of 1950.

Defacing of
road surface
or traffic sign.

39.—(1) No person (except in the execution of some act which he has lawful authority to perform) shall—

(a) soil or deface the surface of any county road (not being a claimed road) in the county or any wall fence post or other structure or erection or any tree in or adjoining any such road by inscribing or painting thereon any letter sign device or other mark;

(b) remove obliterate deface or obscure any traffic sign erected or placed in the county under the provisions of the Road Traffic Acts 1930 to 1956.

(2) If the provisions of the foregoing subsection are contravened the highway authority as regards the surface of the road and the traffic sign and the local authority as regards the wall fence post structure erection or tree may cleanse or reinstate the same and remove any such letter sign device or other mark.

(3) (a) Any person who contravenes the provisions of subsection (1) of this section shall be liable to a fine not exceeding five pounds and the highway authority and the local authority may recover from him the expenses incurred by them in consequence of such contravention.

(b) When exercising the powers of subsection (2) of this section an authority as between themselves and the person by whom the provisions of subsection (1) of this section are contravened shall not in the absence of negligence on the part of the authority or of any person employed by them be liable for any damages for or in respect of or consequent upon the exercise of those powers and any such damages paid by the authority

in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by the person by whom the said provisions were contravened.

PART III
—cont.

(4) Any byelaw relating to the purposes of this section made in pursuance of section 249 of the Act of 1933 and in force in the county or any part thereof shall cease to apply to a county road (not being a claimed road).

F. Private streets

40. If—

- (1) the owner of land fronting adjoining or abutting on a private street in the county transfers the land or any part of it; and
- (2) any expenses of private street works in or in relation to that street are apportioned on the land transferred; and
- (3) the private streets authority are unable to recover those expenses in whole or in part from the person to whom the land was transferred or by the sale thereof; and
- (4) a magistrates' court is satisfied that the transfer was intended for the purpose of evading the payment of any expenses of private street works;

Evasion by
owners of
private street
works
expenses.

then the expenses so apportioned or so much thereof as has not been recovered by the private streets authority may to such extent as the court may determine be recovered from the person who made the transfer as if he had not made it and may be recovered from him in the manner in which expenses of private street works may be recovered.

41.—(1) Where in any rural district it appears to the Council that a new street has been formed by reason of additions made to an existing footpath bridle-path or other right of way repairable by the inhabitants at large (not being or comprising a carriageway) otherwise than by the giving up for the purpose by the Council of lands owned by them the Council may notwithstanding anything in the Act of 1892 carry out private street works under the provisions of the Act of 1892 in respect of such street or any part of such street and apportion the expenses thereof on the premises fronting adjoining or abutting on such street or such part thereof as if no part of the said street was so repairable.

Application
of Act of
1892 to parts
of public street.

(2) Notwithstanding anything in the Act of 1892 the Council may in any rural district carry out private street works under the provisions of the Act of 1892 throughout the width of a street notwithstanding that part of the width consists of a highway repairable by the inhabitants at large but save in a case falling

PART III
—cont.

within the provisions of subsection (1) of this section the Council shall be entitled to apportion against the premises liable to be charged therewith only such part of the expenses as relates to the portion of the street which is not so repairable.

(3) For the purposes of any apportionment under subsection (2) of this section premises fronting adjoining or abutting on a street shall be deemed to front adjoin or abut on the portion of the street which is not repairable by the inhabitants at large.

(4) Where in consequence of any order or orders made under sections 30 31 or 32 of the Public Health Act 1925 any lands are added to an existing highway repairable by the inhabitants at large such lands if so resolved by the Council shall for the purposes of the Act of 1892 in any rural district be deemed to be a street not repairable by the inhabitants at large and the Council may apportion the whole or any portion of the expenses of any private street works carried out in respect of such street or any part of such street on the premises of which such lands formed part immediately prior to their addition to the highway as aforesaid:

Provided that such expenses shall not include any expense which subsection (3) of section 31 of the Public Health Act 1925 requires to be borne by the local authority.

Extension of
power to
contribute
to expenses of
private street
works.

42. The power of the Council to contribute the whole or a portion of the expenses incurred by them in executing private street works with respect to any street or part of a street shall be extended so as to cover also the contribution of the whole or any portion of the amount which would otherwise be apportioned and charged under any statutory provision for the time being in force in the county relating to private street works in respect of the said expenses against any premises of which only a flank fronts adjoins or abuts on such street or part of a street and the amount which would otherwise so be apportioned and charged against any such premises in respect of the flank thereof shall be reduced by the amount of the contribution made by the Council under this section in respect of such premises.

Recovery of
private street
works charges
where owner
unknown.

43.—(1) Where any private street works in the county have been completed by the Council but the Council are unable to recover the amount due from the owner of any premises or otherwise under the Act of 1892 or the provisions of a local Act relating to private street works whichever shall be the appropriate enactment by reason of the fact that such owner is unknown and cannot after diligent inquiry made when the said amount becomes due and at reasonable intervals thereafter be found the Council may at any time after the expiration of twelve years from the date when the said amount becomes due apply to the county court and that court may on the receipt of such application and on being satisfied that the provisions of this subsection have been complied with make an order vesting the said premises in

the Council absolutely and thereupon the Council may appropriate the said premises subject to and in accordance with the provisions of section 163 of the Act of 1933 as if the said premises were land which was not required for the purpose for which it was acquired.

(2) Where the county court make an order under subsection (1) of this section the court shall nominate a surveyor for determining the value of the said premises and such surveyor shall determine the same accordingly and shall annex to his valuation a declaration in writing subscribed by him of the correctness thereof and the Council shall thereupon deposit a sum equal to the amount of such valuation after deduction of the amount of the final apportionment in respect of the said premises with interest thereon for a period of six years at the rate of five per centum per annum or at such other rate as may have been fixed by order of the Minister under section 77 of the Public Health Act 1925 together with all costs and expenses reasonably incurred by the Council.

(3) Any sum to be deposited under subsection (2) of this section shall be deposited in accordance with section 76 of the Lands Clauses Consolidation Act 1845 as if it was a sum awarded to be paid to an owner who cannot be found and as if the Council were the promoters of an undertaking and such sum shall be applied in accordance with section 78 of the said Act.

(4) The powers conferred by subsection (1) of this section shall be exercisable by the Council in addition to any existing rights powers and remedies for the recovery of expenses and shall be exercisable by the Council in respect of all private street works whether completed before or after the passing of this Act.

44.—(1) (a) The Council at their own expense may—

Powers as to
private streets.

- (i) execute temporary repairs in;
- (ii) execute works for preventing or minimising dust in;
- (iii) provide and instal lamps lamp-posts and other apparatus and material for lighting;
- (iv) scavenge light water or tar spray;

any street or part of a street in any district which is dedicated to the public use but is not a highway repairable by the inhabitants at large.

(b) Any lamps apparatus or material for electric lighting provided or installed in pursuance of the powers conferred by subparagraph (iii) of paragraph (a) of this subsection shall be so constructed or installed and so maintained and used as to prevent interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

PART III
—cont.

(2) The exercise by the Council of their powers under this section shall not prejudice their powers under any statutory provision for the time being in force in the county relating to private street works or private street improvement expenses or under section 19 of the Public Health Acts Amendment Act 1907.

(3) The Council shall only exercise the powers of this section in districts in which they are the private streets authority.

*G. Footpaths*Crossings
over
footways.

45.—(1) Where the occupier of or any person residing in any premises in the county which abut on or have access to any county road (not being a claimed road) habitually takes or permits to be taken a horse or horse-drawn or mechanically propelled vehicle across any grass verge or any such horse or horse-drawn or mechanically propelled vehicle (other than a motorcycle and a vehicle of which the cylinder capacity of the engine does not exceed two hundred and fifty cubic centimetres) across any kerbed or paved footway in such road to those premises the highway authority may give notice to the occupier—

- (a) that they propose to construct across the grass verge or footway a carriage-crossing of such materials and in such manner as they may specify in the notice; or
- (b) in the case of a footway that they propose to strengthen or adapt it in such manner as they may so specify; or
- (c) imposing such reasonable conditions on the use of the grass verge or footway as a crossing as aforesaid as they may so specify:

Provided that this subsection shall not apply to any premises used exclusively for agricultural purposes within the meaning of the Act of 1947.

(2) Any person aggrieved by a notice under the foregoing subsection may appeal to a magistrates' court.

(3) The highway authority may execute such works as may have been specified in a notice served under paragraph (a) or paragraph (b) of subsection (1) of this section and recover the expenses of so doing from the occupier.

(4) If the highway authority impose any condition under paragraph (c) of subsection (1) of this section any person who knowingly uses the grass verge or footway as a crossing as aforesaid or permits it to be so used in contravention of that condition shall be liable to a fine not exceeding five pounds.

(5) Nothing in this section shall impose on the owner or occupier any obligation to maintain any crossing constructed or footway strengthened or adapted in pursuance of a requirement made under this section.

(6) Section 18 of the Public Health Acts Amendment Act 1907 shall if in force in a district cease to be in force therein in relation to county roads (not being claimed roads) and if not in force in a district shall not be declared to be in force therein in relation to such a road and the following provisions of this subsection shall have effect as respects such a road in a district:—

- (a) Any person may request the highway authority in writing to carry out such works as shall be specified in the request for the purpose of forming a carriage-crossing across a grass verge or footway in any such road or of strengthening or adapting a part of any such footway as a carriage-crossing;
- (b) The highway authority may approve the request either with or without modifications or propose alternative work or reject the request;
- (c) The highway authority shall give the person making a request notice of their decision under the last foregoing paragraph and if they approve the work requested or propose alternative work shall furnish him with an estimate of the cost of the work as approved or proposed by them;
- (d) The person making a request may deposit with the highway authority the amount of the said estimate and require them to execute the work as approved or proposed by them;
- (e) As soon as practicable after such a deposit has been made the highway authority shall execute the work as approved or proposed by them and any difference between the sum deposited and the actual cost of the work shall be paid to or by the highway authority by or to the person making a request as the case may require.

(7) The code in Part II of the Act of 1950 (which relates to cases where undertakers' apparatus is affected by road works) shall have effect as if works carried out by the highway authority in pursuance of a notice under subsection (1) of this section or under powers conferred by subsection (6) of this section were works such as are mentioned in paragraph (a) of subsection (1) of section 21 of that Act.

(8) The expenses recoverable under subsection (3) of this section and the cost of the works for the purposes of subsection (6) shall include the cost of any works which are required by the Act of 1950 to be executed in consequence of the construction of the crossing or the strengthening or adaptation of the footway.

PART III
—cont.

Power to
construct
footpaths
otherwise
than alongside
highways.

46. A highway authority may provide wherever they shall deem it necessary or desirable for the safety or accommodation of foot-passengers proper and sufficient footpaths on lands adjacent or near to any county road (not being a claimed road) under their control and may by agreement acquire land for that purpose.

H. Miscellaneous

Mixing of
mortar in
streets.

47.—(1) No person shall mix mortar or any like substance in any county road (not being a claimed road) in the county except upon such board or in such receptacle as will protect such road from such mortar or substance:

Provided that this section shall not apply to the mixing in any such road of mortar or like substance for the purposes of making up repairing reinstating altering or improving such road.

(2) Any person who contravenes the provisions of this section shall be liable to a fine not exceeding five pounds.

Summary
recovery of
damages for
negligence.

48. Any compensation recoverable by the Council for damage caused by negligence to any lamp or lamp-post belonging to them or any apparatus or equipment provided by them or at their expense in any street or public place shall if the amount thereof does not exceed twenty pounds be recoverable summarily as a civil debt.

Exercise by
Council of
powers with
respect to
county roads.

49.—(1) The Council shall with respect to county roads (not being claimed roads) and roads constructed by the Council or by some person under agreement with them which when completed are intended to become county roads have the functions of an urban district council or a local authority under the enactments mentioned in this section and those enactments shall apply accordingly.

(2) The enactments referred to in this section are as follows:—

The Towns Improvement Clauses Act 1847 (as incorporated with the Act of 1875)—

Section 68 (Houses projecting beyond line of street when taken down to be set back);

Section 69 (Future projections of houses etc. to be removed on notice);

Section 70 (Commissioners may cause existing projections to be removed and compensation to be made);

Section 71 (Doors in future to be made to open inwards);

Section 72 (Doors opening outwards may be altered by commissioners);

Section 73 (Coverings for cellar doors to be made by occupier);

Section 74 (Waterspouts to be affixed to houses or buildings);

Section 75 (Ruinous or dangerous buildings to be taken down or secured by owners etc.);

Section 76 (The expenses to be levied by distress on the owner);

Section 77 (If owner cannot be found commissioners may take the house or ground making compensation provided by 8 & 9 Vict. c. 18);

Section 78 (Commissioners may sell the materials restoring to the owner overplus arising from the sale);

Section 81 (Penalty for not lighting deposits of building materials or excavations);

Section 82 (Penalty for continuing deposits or building materials or excavations at unreasonable time);

Section 83 (Dangerous places to be repaired or inclosed):

The Public Health Acts Amendment Act 1890—

Section 35 (As to repair of cellars under streets):

The Public Health Acts Amendment Act 1907—

Section 30 (Dangerous places to be repaired or enclosed);

Section 31 (Fencing lands adjoining streets):

The Public Health Act 1925—

Section 24 (Projections against or in front of houses or buildings).

(3) The Council shall not in the exercise of the powers of this section perform or discharge any of the functions under the enactments mentioned in this section in any district in which such enactments are for the time being in force except at the request of and by agreement with the local authority of such district and during the continuance of such agreement such functions shall cease to be exercisable by such local authority in relation to the road to which the agreement applies:

Provided that nothing in this subsection shall prevent the Council from exercising any powers conferred on them by any other enactment.

PART III
—cont.

(4) Any agreement made under the provisions of this section may relate to any one or more roads in a district.

(5) (a) The functions conferred on the Council under the enactments referred to in this section shall not be exercised with respect to any advertisement.

(b) For the purposes of this subsection the expression "advertisement" has the same meaning as in section 119 of the Act of 1947.

Sale of food
and articles
on verges etc.

50.—(1) No person (other than a person selling offering or exposing for sale or depositing for sale any food goods provisions articles or things at any market or fair for which a toll stallage or rent is payable) shall provide erect or place and habitually use any shed hut shelter booth shop or other erection whether on wheels or not or any vehicle or any container used with or without a stall on the verge of any road to which this section applies or on any roadside waste adjacent thereto for the purpose of selling offering depositing or exposing for sale any food goods provisions articles or things other than newspapers.

(2) If any person contravenes the provisions of this section he shall be liable to a fine not exceeding forty shillings and to a daily fine not exceeding forty shillings.

(3) This section applies to such parts of the trunk roads A.2 and A.20 and the classified road A.21 as are situate within the county and to any other county road or part of a county road in the county to which the Minister of Transport and Civil Aviation may by order on the application of the highway authority apply this section.

(4) Nothing in this section shall apply to—

(a) any shed hut shelter booth shop or other erection or any vehicle provided erected or placed on private property by or with the consent of the owner of such property; or

(b) any fixed or movable shelters or other accommodation for servants of the commission erected maintained or placed by the commission under the provisions of section 65 of the London Passenger Transport Act 1938;

(c) the sale of food goods provisions articles or things from a vehicle when in use solely for the purpose of itinerant trading with the occupants of premises adjoining any verge or roadside waste to which this section applies.

Time for
claiming
county road.

51. Where at any time in any urban district having a population exceeding twenty thousand according to the last estimate for the time being published by the Registrar-General there is any county road in respect of which the local authority have not

claimed to exercise the functions of maintenance and repair pursuant to section 32 of the Local Government Act 1929 and the time within which such a claim may be made has apart from the provisions of this section expired the local authority may make such a claim in respect of that road with the consent of the Council and in that event the claim shall be deemed to have been duly made under the said section.

PART III
—cont.

52.—(1) A local authority may remove and store any furniture articles goods or materials which may have been placed or dropped (whether accidentally or otherwise) in or upon any county road (not being a claimed road) in their district and which—

Removal of
furniture etc.
from streets.

- (a) may have remained there for more than forty-eight hours; or
- (b) are likely to cause an obstruction;

and the local authority shall not be liable for any loss or damage caused by such removal or storage.

(2) If the local authority remove any furniture articles goods or materials under the powers of this section—

- (a) they shall if and as soon as it is reasonably practicable so to do notify the person whom they believe to be the owner thereof; and
- (b) the furniture articles goods or materials shall be deemed to be materials within the meaning of section 276 of the Act of 1936 but the local authority shall not exercise any power to sell any such furniture articles goods or materials whether under that section or otherwise until after the expiration of twenty-eight days from the date of such notification or six months from the day on which they removed the furniture articles goods or materials whichever shall first occur.

(3) Nothing in this section shall apply to any articles goods or materials placed in or upon any street in connection with or for the purposes of undertakers' works within the meaning of section 1 of the Act of 1950.

53. Notwithstanding anything contained in any enactment it shall be lawful for the servants or agents of the highway authority to drive vehicles on the footpath causeway or verge in any county road (not being a claimed road) in the county in connection with the cleansing sweeping construction maintenance or repairing of any such footpath causeway or verge or the hedges thereof.

Power to
drive on
footpaths for
certain
purposes.

54.—(1) The highway authority may on the application of the owner or occupier of any house on land adjacent to any county road (not being a claimed road) in the county and at the expense of such owner or occupier surface any path entrance drive or other means of communication

Power to
surface access
to houses.

PART III
—cont.

leading from such road to the house or any garage on that land when the highway authority are themselves carrying out any works of repair maintenance or improvement to such road adjacent to such land.

(2) In this section the expression “surface” means sweeping tar spraying and gritting.

PART IV

PUBLIC ORDER AND SAFETY

Provision of
bins for litter.

55.—(1) The Council may provide and place and maintain on any road or roadside waste adjacent thereto or on any open space park or recreation ground belonging to or maintained by the Council and on any other land within the county to which the public have access bins or other receptacles for the reception or deposit of litter and may from time to time empty and cleanse any such bins or receptacles:

Provided that the powers of this section shall not be exercised—

- (a) as respects a road or roadside waste without the consent of the highway authority;
- (b) as respects an open space park or recreation ground without the consent of the Council local authority or parish council to whom the open space park or recreation ground belongs or by whom it is maintained;
- (c) as respects other land to which the public have access without the consent of the owner thereof;
- (d) as respects Rochester Bridge or the approaches thereto without the consent of the wardens and assistants.

(2) In this section the expression “open space” has the same meaning as in the Open Spaces Act 1906 but does not include a consecrated burial ground in which interments have taken place.

Interference
with refuse
bins etc.

56. Any person who shall wilfully remove or otherwise interfere with any dustbin refuse bin or street orderly bin or other receptacle for the temporary deposit or collection of refuse dust ashes or rubbish or any street sand bin belonging to the Council shall be liable to a fine not exceeding forty shillings and the Council may recover the expenses of replacement and making good from such person.

Prohibition on
solicitation of
school children
to sell or
exchange
articles etc.
at schools.

57.—(1) While any child is entering or leaving any school in the county or is entering or leaving any yard or playground appurtenant to any such school or is in any such yard or playground no person shall solicit such child—

- (a) to sell to such person any article or thing; or
- (b) to exchange with such person any article or thing for any other article or thing.

(2) Any person who contravenes the provisions of this section shall be liable to a fine not exceeding five pounds.

PART IV
—cont.

(3) In this section the expression “ child ” has the same meaning as in section 114 of the Education Act 1944 and the expression “ article or thing ” includes any animal fish bird or other living thing.

58.—(1) Section 154 of the Act of 1936 shall in its application to the county have effect as if after the words “ or any article whatsoever ” in subsection (1) of that section there were inserted the words “ or any animal fish bird or other living thing ”.

Amendment of
section 154 of
Act of 1936.

(2) This section shall come into operation on the first day of June nineteen hundred and fifty-nine.

(3) The Council shall forthwith after the passing of this Act cause public notice to be given of the effect of the foregoing provisions of this section by advertisement in two or more newspapers circulating in the county and otherwise in such manner as the Council think fit.

59.—(1) Subject to the provisions of this section the police authority may provide—

Police
telephone
call boxes
and shelters.

(a) such police telephone call boxes and installations; and

(b) such shelters or boxes for the use of police constables; in such positions in any street park or public place in the county as they think fit.

(2) Nothing in this section shall authorise the transmission of any telegram which is within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

(3) The police authority shall not exercise the powers of this section—

(a) without the consent of the highway authority in any street; or

(b) without the consent of the local authority in any park or public place belonging to such local authority; or

(c) without the consent of the wardens and assistants in or upon Rochester Bridge or the approaches thereto; or

(d) without the consent of the undertakers concerned—

(i) in or upon any bridge carrying a street over any railway canal or inland navigation or the approaches thereto or under a bridge carrying a railway canal or inland navigation over any street; or

(ii) in any street belonging to and repairable by any transport undertakers and forming the approach to any station dock wharf or depot of such undertakers; or

PART IV
—cont.

(iii) so as to obstruct or interfere with the access to or exit from any station dock wharf or depot of such undertakers; or

(e) without the consent of the land drainage authority concerned—

(i) on any sea or tidal river defence embankment vested in or under the control of the authority or on a site within a distance of fifty feet on either side of such embankment measured from the toe thereof on that side; or

(ii) within twenty feet of the brink of any watercourse vested in or under the control of the authority or if there be a flood defence wall or embankment beside such watercourse within the area bounded on one side by the brink of the watercourse and on the other side by a line drawn parallel with and at a distance of fifteen feet from the toe of the embankment farthest from the watercourse; or

(f) without the consent of the owner of the premises concerned in any street or on land abutting on any street in such manner as to obstruct an existing access to any premises abutting on such street.

(4) Any consent required by this section shall not be unreasonably withheld but may be given subject to any reasonable conditions including a condition that the police authority shall remove any box or shelter either at any time or at or after the expiration of a period if reasonably required so to do by the person giving the consent.

(5) Any question whether any consent required by this section has been unreasonably withheld or has been given subject to unreasonable conditions or whether the removal of any box or shelter has been unreasonably required shall—

(a) in the case of a consent of the Minister of Transport and Civil Aviation be referred to and determined by arbitration;

(b) in the case of any consent relating to a park be referred to and determined by the Minister;

(c) in the case of a consent of a land drainage authority be referred to and determined by the Minister of Agriculture Fisheries and Food;

(d) in the case of any other consent be referred to and determined by the Minister of Transport and Civil Aviation.

(6) In this section the expression "transport undertakers" means any railway dock canal inland navigation or passenger road transport undertakers.

(7) The provisions of this section shall not apply within the metropolitan police district as constituted by section 16 of the Police Act 1946.

PART IV
—cont.

60.—(1) If any person wilfully and without the consent of the police authority or of the fire authority (as the case may require)—
Offences in respect of telephone boxes etc.

(a) obstructs the access to any police telephone call box provided by the police authority or any shelter or box so provided for the use of police constables; or

(b) removes, obliterated, alters, defaces or obscures any plate, notice or mark provided by or at the expense of the police authority or by or at the expense of the fire authority (as the case may be) for indicating the position of any such call box, installation, shelter or box or the position of any underground tank provided for fire-fighting purposes; or

(c) interferes with the equipment in any such call box, shelter or box;

he shall be liable to a fine not exceeding five pounds and the police authority or the fire authority (as the case may require) may recover from him the expenses of removing the obstruction or replacing or making good the plate, notice, mark or equipment.

(2) If any person—

(a) telephones or causes to be telephoned from any such call box any statement which he knows to be false (other than any such false alarm of fire as is referred to in section 31 of the Fire Services Act 1947); or

(b) for the purpose of requiring the services of the police, the fire brigade or an ambulance, telephones or causes to be telephoned any such statement from a telephone call box provided in the county by the Postmaster-General;

he shall be liable to a fine not exceeding in the case of an offence under paragraph (a) of this subsection ten pounds and in the case of an offence under paragraph (b) of this subsection twenty-five pounds.

(3) In this section the expression “call box” includes any installation.

61. If any person wilfully or negligently covers over or obstructs or interferes with the convenient access to any fire alarm, fire hydrant, open water supply designated for fire-fighting purposes by agreement or pipeline laid to supply water for fire-fighting purposes or removes, effaces or defaces any plate or mark indicating the position of such alarm, hydrant, water supply or pipeline, he shall be liable to a fine not exceeding ten pounds and the fire authority may recover from him the expenses of removing the obstruction or replacing or making good the plate or mark.

PART IV
—cont.Firemen's
switches for
luminous
tube signs.

62.—(1) As from the appointed day in any district any luminous tube sign or other similar apparatus requiring the transforming of electrical energy to a higher voltage fitted externally or internally on or in any premises in that district other than such apparatus which is fitted internally in any premises and is attended when in operation or is used for lighting only and is already fitted with a readily accessible switch in the low voltage side of the apparatus shall be provided with a cut-off switch on the low voltage side of the transforming apparatus.

(2) Before any apparatus to which subsection (1) of this section applies is fitted on or in any premises in the district the owner or occupier of the premises shall at least fourteen days before the work of fitting the apparatus is begun give notice to the local authority that such apparatus is about to be fitted indicating the position in which it is proposed that the cut-off switch required under subsection (1) of this section will be placed and in the case of any such apparatus to be fitted internally in any premises shall inform the local authority of the pattern of the cut-off switch which it is proposed to provide.

(3) The owner or occupier of the premises in respect of which notice is given under subsection (2) of this section shall take into consideration any representations which may be made by the local authority after consultation with the fire authority within fourteen days of the receipt of such notice in order to secure that the cut-off switch will be placed in a position in which it will be readily recognisable by and accessible to firemen and in the case of any such apparatus to be fitted internally in any premises the work of fitting the apparatus shall not be begun until the pattern and position of the cut-off switch have been approved by the local authority after consultation with the fire authority:

Provided that where the pattern and position of any cut-off switch to be provided in connection with such apparatus to be fitted internally in any premises complies with the provisions of the Institution of Electrical Engineers' regulations the pattern and position shall be deemed to have been approved by the local authority.

(4) The provisions of this section shall not prejudice or affect the requirements of the Electricity (Supply) Regulations 1937 or any regulations or other provisions amending or replacing the same.

(5) This section shall not apply to premises in respect of which a licence under the Cinematograph Acts 1909 and 1952 is for the time being in force:

Provided that where any luminous tube sign to which but for this subsection subsection (1) of this section would apply is proposed to be fitted on or in any such premises the owner or

occupier thereof shall before such apparatus is fitted give notice to the local authority and the fire authority informing them of the position in which it is proposed to place the cut-off switch.

63.—(1) The Council may in relation to any substance to which this section applies—

Prescription
of signs etc.
to be used on
certain
buildings.

(a) prescribe standard uniform signs or symbols or warning notices in a form approved by the Secretary of State clearly indicating the nature of the substance and the existence of danger from fire;

(b) by notice require the occupier of any part of a building used for the manufacture or storage of the substance to affix within such reasonable time as is specified in the notice and thereafter keep fixed in a conspicuous position or positions in or on the part of the building used for such manufacture or storage the appropriate sign symbol or notice.

(2) This section applies to—

(a) any substance which is gaseous at a temperature of thirty-three degrees fahrenheit at atmospheric pressure and which is inflammable; and

(b) any other substance which when tested by a method approved by the Secretary of State gives off an inflammable vapour at a temperature of less than one hundred and fifty degrees fahrenheit; and

(c) any other substance likely to involve special hazard to persons engaged in normal duties of fire fighting.

(3) Any person who fails to comply with the requirements of the Council under this section shall be liable to a fine not exceeding ten pounds and to a daily fine not exceeding five pounds.

64.—(1) The Council may make byelaws for securing the provision of first-aid fire appliances and of means of summoning fire brigades and for the taking of other safety measures by the owner of any camping ground which is provided and habitually used for the placing of movable dwellings:

Fire appliances
at camping
grounds.

Provided that nothing in any byelaws made under this section shall apply to any camping ground—

(a) on which no movable dwellings are situated other than those belonging to travelling showmen (not being pedlars hawkers or costermongers) and regularly used by them in the course of travel for the purpose of their business;

(b) provided by or belonging to the Boy Scouts Association or the Girl Guides Association or the Salvation Army

PART IV
—cont.

or any other camping ground while such camping ground is being exclusively used for camping by members of an organisation established by either of such associations or the Salvation Army in pursuance of their charter or other enabling powers.

(2) Different byelaws may be made under this section for different types of movable dwellings and for camping grounds used for different purposes or of different capacities.

(3) As respects byelaws made under this section the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Secretary of State.

(4) In this section the following expressions have the meanings hereby respectively assigned to them:—

“camping ground” means any area of land on which movable dwellings are situated or which is provided for the placing of movable dwellings;

“movable dwelling” includes—

(a) any tent;

(b) any structure capable of being moved from place to place; and

(c) any van cart carriage truck tramcar railway-carriage motor-car caravan trailer omnibus or other vehicle;

used or intended to be used for the purpose of human habitation (whether temporarily or otherwise) but does not include—

(i) any tent structure or vehicle temporarily used by shepherds labourers or other persons for farming agricultural or other like purposes or in connection with building operations;

(ii) any tent structure or vehicle temporarily used for the service of the Council or of any local authority or of any statutory undertakers or of any other public authority;

(iii) any canal boat or any other boat;

(iv) any shelter provided for the treatment of tuberculosis or used in connection with an open air school;

(v) any vehicle used by the commission in connection with the maintenance and repair of their undertaking; or

(vi) any tent structure or vehicle belonging to any statutory undertakers and any trailer drawn by such vehicle if and so long as such tent structure vehicle or trailer is used by those undertakers for the purposes of their undertaking.

65. The fire authority may—

(1) within the county arrange for—

(a) the publication of information on questions relating to fire services fire fighting and precautions for avoiding the occurrence of fires; and

(b) the delivery of lectures and addresses and the holding of discussions on such questions; and

(c) the display of pictures cinematograph films or models or the holding of exhibitions relating to such questions;

(2) within or outside the county prepare or join in or contribute to the cost of the preparation of pictures films models or exhibitions to be displayed or held as aforesaid.

PART IV

—cont.

Instructions
lectures etc.
on questions
relating to
fire services
etc.

PART V

LECTURES CULTURAL ACTIVITIES RECORDS ETC.

66.—(1) It shall be lawful for the Council—

(a) to provide suitable lecture rooms and to cause lectures to be given on such subjects as the Council think fit and to let such rooms and to make reasonable charges for admission to such lectures; and

(b) to provide suitable rooms for art exhibitions and to provide or permit art exhibitions in such rooms and to let such rooms and to make reasonable charges for admission to such exhibitions:

Provision of
lectures etc.

Provided that—

(i) the sum to be expended by the Council in any one financial year on the provision of lectures; and

(ii) the sum to be expended by the Council in any one financial year on the provision of art exhibitions;

shall not in either case exceed the equivalent of one-third of the product of a penny rate as ascertained or estimated for the purpose of subsection (2) of section 9 of the Rating and Valuation Act 1925 in addition to any moneys received by the Council under the provisions of this section.

(2) The Council may use or allow to be used or let any part of any public library provided by them and not at the time required for the purpose of a library for public and other meetings and for lectures exhibitions and performances for or in connection with the advancement of art education drama science music or literature.

(3) The Council may provide and sell or authorise the provision and sale of programmes of any lectures or exhibitions given in pursuance of this section.

PART V
—cont.

(4) Nothing in this section shall be taken to dispense with the consent of a Minister of the Crown to any appropriation lease or other disposition of any lands of the Council in any case in which such consent would have been required if this section had not been enacted.

(5) Nothing in this section shall affect the provisions of any enactment by virtue of which a licence is required for the public performance of stage plays or for public music or dancing or any public contest or display of boxing or wrestling or other public entertainment of the like kind or a cinematograph exhibition.

Power to
publish
bulletins etc.

67.—(1) In connection with their powers under section 66 (Provision of lectures etc.) of this Act and under the Public Libraries Acts 1892 to 1919 the Council may publish and sell or dispose of bulletins journals periodicals and leaflets and documents of historical or literary interest having a local connection.

(2) Nothing in this section shall affect the rights of any person under the law for the time being relating to copyright.

Subscriptions
to scientific
bodies and
other expenses.

68. The Council may pay reasonable subscriptions (whether annually or otherwise) to the funds of any scientific or other society or body (not carrying on business for profit) which is or the members of which are engaged in investigations or the keeping of records of use or value to the Council and any reasonable expenses of the attendance of any members or officers of the Council at or of persons nominated by the Council to attend conferences or meetings of such society or body and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings:

Provided that the payments to be made by the Council under this section shall not in any financial year exceed the equivalent of one-tenth of the product of a penny rate for the county as ascertained or estimated for the purpose of subsection (2) of section 9 of the Rating and Valuation Act 1925.

Acquisition of
pictures etc.

69.—(1) The Council may acquire by agreement any picture or sculpture and may erect and maintain or contribute towards the provision erection and maintenance of any picture or sculpture in any place provided by or vested in the Council under section 125 of the Act of 1933 and may from time to time enter into and carry into effect a contract for the production of a picture or sculpture and for the purchase thereof by the Council when completed.

(2) For the purpose of providing for the accommodation exhibition and preservation of pictures or sculptures or objects of historical antiquarian or other public interest which may for the time being be in the possession of the Council by virtue of this section or of any gift loan or discovery the Council may

adapt furnish and maintain any premises given to and for the time being vested in the Council for the purposes of this section.

PART V
—cont.

(3) The Council may let any building vested in them as aforesaid on such terms and conditions as to payment or otherwise as they think fit and may make charges for admission to any such building which may for the time being be under their management and control.

70.—(1) The Council may receive on deposit or acquire and may preserve arrange index classify exhibit and publish such records deeds archives and other documents of the county and of the Council or such extracts from them or reference to their contents as the Council may consider to be of public interest.

Acquisition
preservation
and
publication
of records.

(2) Nothing in this section shall affect the rights of any person under the law for the time being relating to copyright.

PART VI

COUNTY QUARTER SESSIONS

71. In this Part of this Act unless the context otherwise requires the following expressions have the meanings hereby respectively assigned to them:—

Interpretation
of Part VI.

“benefits regulations” means the Local Government Superannuation (Benefits) Regulations 1954;

“officer” does not include the clerk of the peace or a deputy clerk of the peace of the county;

“the material date” means the date on which the office of clerk of the peace of the county is first held by a person other than the clerk of the Council.

72.—(1) All officers of the Council who immediately before the material date were employed wholly or mainly for the purpose of assisting the clerk of the peace and the clerk of the Council in carrying out the duties of the office of clerk of the peace for the county shall be transferred to and become officers of the court of quarter sessions for the county on such date.

Transfer of
staff.

(2) Every officer so transferred shall hold his office by the same tenure and upon the same terms and conditions as if this Part of this Act had not been passed and while performing duties analogous to those which he was required to perform immediately before the material date shall receive not less salary or remuneration and be entitled to not less superannuation allowance (if any) than the salary remuneration or superannuation allowance to which he would have been entitled if this Part of this Act had not been passed.

73.—(1) The court of quarter sessions for the county shall appoint to be during the pleasure of the court officers of the

Appointment
of staff.

PART VI
—cont.

court such additional or other officers as they may consider necessary to assist the clerk of the peace for the county in carrying out the duties appertaining to that office.

(2) The Council shall pay out of the county fund to every officer transferred to or appointed by the court of quarter sessions for the county by or under the provisions of this Part of this Act such salaries as may from time to time be determined by the court of quarter sessions for the county after consultation with the Council:

Provided that the Council if aggrieved by a determination of the court of quarter sessions under this subsection may within one month from the receipt by the Council of written notice of such determination refer the matter to arbitration and the arbitrator's decision shall be binding upon the court of quarter sessions and the Council.

Super-
annuation
of staff.

74.—(1) A person holding the office of clerk of the peace or appointed to be a deputy clerk of the peace of the county and any officer employed by the court of quarter sessions for the county to assist the clerk of the peace in carrying out the duties appertaining to that office shall be superannuable in accordance with the Local Government Superannuation Acts 1937 to 1953 as modified by this section.

(2) The Local Government Superannuation Acts 1937 to 1953 shall have effect in relation to any person mentioned in subsection (1) of this section as if the court of quarter sessions for the county were a local authority mentioned in Part I of the First Schedule to the Local Government Superannuation Act 1937 and as if he were employed by the court of quarter sessions.

(3) The First Schedule to this Act shall have effect for the purpose of adapting the Local Government Superannuation Acts 1937 to 1953 and the benefits regulations in relation to any such clerk deputy clerk or person as is mentioned in subsection (1) of this section.

Application of
section 12 of
Local
Government
(Clerks)
Act 1931.

75. The provisions of section 12 of the Local Government (Clerks) Act 1931 shall extend and apply to the powers and duties of the court of quarter sessions for the county under this Part of this Act as if that section were re-enacted in this Part of this Act with any necessary modifications.

Operation of
this Part of
Act and
supersession
of enactments
inconsistent
therewith.

76.—(1) The provisions of this Part of this Act shall come into operation on the material date and shall continue in force notwithstanding that at any time thereafter the person holding the office of clerk of the peace for the county also holds the office of clerk of the Council or any person appointed to be a deputy clerk of the peace for the county also holds the appointment of deputy clerk of the Council.

(2) Any provisions of the Local Government (Clerks) Act 1931 and of any other Act which are inconsistent with the provisions of this Part of this Act shall cease to have effect within the county.

PART VI
—cont.

77. Nothing in this Part of this Act shall affect the obligations of the Council or the standing joint committee under section 64 of the Local Government Act 1888. Continuance of certain obligations.

PART VII

FINANCE

A. Financial provisions relating to funds of the Council

78.—(1) The Council shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow— Power to borrow.

(a) such sums as may be necessary for any of the purposes of this Act;

(b) without the consent of any sanctioning authority such sums as may be necessary for paying the costs charges and expenses of this Act.

(2) The Council shall repay all moneys borrowed under paragraph (b) of the foregoing subsection within such period as the Council may determine not exceeding five years from the date or dates of borrowing.

(3) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed under this section for the repayment of any money borrowed under subsection (1) of this section shall as respects that money be the fixed period for the purpose of the said Part IX.

79.—(1) The Council may establish a fund to be called “ the insurance fund ” with a view to providing a sum of money which shall be available for making good all such losses damages costs and expenses as may from time to time be specified in a resolution of the Council (in this section referred to as “ the specified risks ”). General insurance fund.

(2) The establishment of an insurance fund under this section shall not prevent the Council from insuring in one or more insurance office against the whole or any part of all or any of the specified risks.

(3) In each financial year after the establishment of the insurance fund the Council shall pay into that fund either—

(a) such a sum as shall in their opinion be not less than the aggregate amount of the premiums which would be payable if the Council fully insured in some insurance office of good repute against the specified risks; or

PART VII
—cont.

(b) if the Council insure in some insurance office against the whole or part of all or any of the specified risks such sum as will together with the premiums paid for the last-mentioned insurance be not less than the aggregate amount aforesaid.

(4) When the insurance fund shall amount to the prescribed amount (as hereinafter defined) the Council may (if they think fit) discontinue the yearly payments to the fund but if the fund is at any time reduced below the prescribed amount the Council shall recommence and continue the yearly payments to that fund in accordance with subsection (3) of this section until the fund be restored to the prescribed amount.

(5) The Council shall provide the yearly payments aforesaid by contributions from the revenue moneys of the county fund and shall show the same in their accounts under the separate heading or division in respect of the particular undertaking department or service of the Council which if the specified risks were insured against in an insurance office would be properly chargeable with the payment of the premium of such insurance.

(6) (a) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses damages costs and expenses in respect of the specified risks all moneys for the time being standing in the credit of the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities and the interest and other annual proceeds received by the Council in respect of such investments shall be carried to the county fund.

(b) In addition to the sum required to be paid into the insurance fund by subsection (3) of this section the Council shall in every year so long as the fund is less than the prescribed amount carry to the credit of that fund out of the revenue moneys of the county fund an amount equal to the interest and other annual proceeds carried to the county fund in pursuance of the last foregoing paragraph.

(c) If and so long as the insurance fund amounts to the prescribed amount the interest and other annual proceeds received by the Council in respect of or on investments forming part of the insurance fund and carried to the county fund may be apportioned in the accounts of the Council between the several undertakings departments or services liable to contribute to the insurance fund in such shares or proportions as may be equitable.

(7) For the purposes of this section the Council may if they deem it expedient include in the specified risks risks of accident to any teacher caretaker or other person employed in any voluntary school in the county.

(8) (a) The insurance fund shall be applied to meet any losses damages costs or expenses sustained by the Council in respect

of the specified risks in the order of the dates on which such losses damages costs or expenses become ascertained and if at any time and from time to time the insurance fund shall be insufficient to make good any such losses damages costs or expenses the Council may with the sanction of the Minister borrow at interest under and subject to the provisions of Part IX of the Act of 1933 such sums of money as will be necessary to make up the deficiency.

(b) The amounts of the annual charges in respect of interest on and repayment of principal of any sums so borrowed and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the county fund and charged in the accounts of the Council under the separate headings or divisions in respect of such undertakings departments or services of the Council and in such proportions as the Council may determine having regard to the risks through which such deficiencies arise.

(9) In the event of the insurance fund ceasing to be required to meet losses damages costs and expenses in respect of the specified risks the insurance fund may be carried to and form part of any capital fund established by the Council under section 1 of the Local Government (Miscellaneous Provisions) Act 1953 or (if the Council so determine) shall be applied in such other manner as the Minister may approve towards the discharge of any debt of the Council or otherwise for any purpose for which capital money may properly be applied.

(10) In this section—

- (a) the expression “ insurance office ” includes an underwriter being a member of an association of underwriters; and
- (b) the expression “ prescribed amount ” means such sum as may from time to time be prescribed by the Council.

80.—(1) The Council may make a scheme for prescribing Scheme for one or more uniform periods within which all or any loans equated periods. contracted by them under statutory borrowing powers shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may apply to any such loans all or any of the provisions of this Act and the Act of 1933 in regard to the borrowing and repayment of money with or without modification and may make provision in regard to all matters incidental to the objects aforesaid.

(2) Any scheme made by the Council under this section shall have no force or effect until confirmed by the Minister who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of this Act.

PART VII
—cont.

(3) Nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme or of the holder of any stock or bonds existing at that time except with the consent of such mortgagee or holder.

(4) The loans referred to collectively in any scheme under general headings in accordance with a classification approved by the Minister may be consolidated and dealt with in the accounts of the Council as if the aggregate amount of the several loans relative to each heading were one loan raised under one statutory borrowing power and if approved by the Minister separate consolidations may be made of all or any of the loans included under such general headings.

(5) Any scheme confirmed under this section may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

Investment of
superannua-
tion fund.

81.—(1) In its application to the Council subsection (3) of section 21 of the Local Government Superannuation Act 1937 shall have effect as if for the obligation to invest certain moneys forming part of the superannuation fund maintained by the Council under that Act there were substituted the obligation to invest such moneys as follows (namely):—

- (a) in or upon any investments authorised by section 1 of the Trustee Act 1925 but without the limitations imposed by the proviso in subsection (1) of section 2 of the said Act or in or upon any other investments for the time being authorised by law for the investment of trust funds; or
- (b) in or upon any of the stocks funds or securities of any dominion commonwealth union dependency or colony forming part of the British Commonwealth of Nations or any province or state having a separate local legislature and forming part thereof respectively; or
- (c) in or upon any of the stocks bonds mortgages or securities of any municipality county or district council or local or public authority or board in the United Kingdom or any such dominion commonwealth union dependency colony province or state as aforesaid authorised under any general or special Act of the United Kingdom Parliament or the legislature concerned to issue the same; or
- (d) in or upon any stocks shares bonds mortgages or securities the capital whereof or a minimum rate of dividend or interest whereon is guaranteed by the

United Kingdom Government or by the government of any such dominion commonwealth union dependency colony province or state as aforesaid; or

(e) in or upon the bonds debentures debenture stock mortgages obligations or securities or the guaranteed or preference or ordinary stock or shares or ordinary preferred or deferred or other stock or shares of any company incorporated under any general Act of the United Kingdom Parliament or under any royal charter being stock or shares which are at the time of making the investment quoted on the London Stock Exchange; or

(f) in the purchase of freehold ground rents or freehold or leasehold land messuages tenements and hereditaments within the United Kingdom provided that as regards leaseholds the term thereof shall have at least sixty years to run; or

(g) upon the security of freehold property freehold ground rents land charges or rentcharges by way of first mortgage up to the limit of two-thirds of the value;

with power of varying such investments from time to time by sale and reinvestment or otherwise:

Provided that no investment shall be made under the powers of paragraph (e) of this subsection—

(a) unless the company shall have paid interest or dividends thereon (as the case may be) at the rate of at least five per centum per annum for not less than four years prior to the date of investment; and

(b) so long as the value of all the investments made under the said paragraph (e) which form part of the superannuation fund equals or exceeds one-quarter of the total value of the assets of that fund.

(2) All costs charges and expenses incurred by the Council in investing moneys forming part of the superannuation fund maintained by the Council or otherwise in relation thereto shall be paid by the Council out of that fund.

B. General

82.—(1) The Council may lend to any local authority and a local authority may borrow from the Council such money as the Council think fit to lend and as the local authority are authorised to borrow for the purpose for which such money is proposed to be borrowed and any money so lent shall be repaid to the Council by the local authority within the period prescribed by the sanctioning authority or otherwise for the repayment thereof.

Power to
Council to
lend money
to local
authorities etc.

(2) Any agreement under this section may be made by resolutions passed respectively by the Council and by the local authority.

PART VII
—cont.

(3) The Council may borrow such sums as may be required for the purpose of lending money to local authorities under this section and the provisions of Part IX of the Act of 1933 shall extend to money borrowed by the Council under this section as if it were borrowed under the said Part IX:

Provided that the consent of the sanctioning authority shall not be required.

(4) Every sum borrowed by the Council under this section shall be repaid within the period to expire not more than one year after that for which the same was lent by them to the local authority.

(5) The Council shall be entitled to charge such rate of interest in respect of any particular loan under this section as may be agreed between the Council and the borrower.

(6) In this section the expression "local authority" means the council of any county or county district and any authority being a local authority as defined by section 34 of the Local Loans Act 1875 and includes any river board or drainage board and any joint board if all the constituent authorities are such local authorities as aforesaid and the police authority.

Closing of
registers.

83.—(1) The Council may close any transfer books or the registers of transfers of authorised securities (other than stock) during the whole of the period of thirty days or any shorter consecutive period next before the date on which interest on the authorised securities to which such transfer book or register relates is payable.

(2) The persons who on the date on which the transfer book or register is closed are entered therein as holders of any security of the class to which such transfer book or register relates shall be entitled to the interest next payable thereon.

Power to
issue bonds.

84.—(1) In addition to any other form of borrowing the Council may exercise any statutory borrowing power by the issue of bonds (in this Act referred to as "bonds") in accordance with the provisions of this Act.

(2) Where the Council raise money by the issue of bonds the following provisions of the Act of 1933 shall apply as if the money had been raised by borrowing on mortgage under that Act and bonds were mortgages within the meaning of that Act:—

Section 209 (Notice of trusts);

Section 210 (Receipts on behalf of joint holders and infants);

Section 211 (Appointment of receiver);

Section 212 (Repayment of moneys borrowed on mortgage);

Section 213 (Sinking fund);

Section 214 (Adjustments of sinking fund).

(3) The provisions set out in the Second Schedule to this Act shall have effect with regard to bonds.

(4) Bonds shall be deemed to be loan capital or funded debt within the meaning of section 8 of the Finance Act 1899.

(5) The provisions of section 115 of the Stamp Act 1891 (which relates to the composition for stamp duty) shall with the necessary adaptations apply in the case of bonds as if those bonds were stock or funded debt within the meaning of that section.

85.—(1) The Council may—

(a) make reasonable payment for or in connection with refreshments for representatives of the Council local authorities or other bodies or for other persons attending conferences or meetings convened by the Council;

Expenses of
public
ceremonies
entertainment
etc.

(b) make reasonable payment for or in connection with the arrangement and conduct of ceremonies relative to or arising out of the statutory functions of the Council; and

(c) pay reasonable expenses of providing tokens or mementoes for persons performing public ceremonies.

(2) Section 1 of the Local Authorities (Expenses) Act 1956 shall in relation to the Council have effect as if—

(a) “members of the Council” included members of committees or sub-committees of the Council; and

(b) in paragraph (b) thereof after the words “distinguished person” there were inserted the words “residing in or”.

86.—(1) The Council may give notice to any person being registered as a holder of any authorised security (other than stock) that they intend to send interest to him by post if he does not object and if such person does not within fourteen days from the receipt of such notice give notice to the Council of such objection the Council may from time to time send orders for the payment of interest or warrants by post to the address of such person appearing in the register:

Interest
warrants by
post.

Provided that if such person gives notice to the Council that he desires such orders or warrants to be sent to another person at a given address the Council may from time to time send the same by post to such other person at such address.

(2) Where more persons than one are registered as joint holders of any authorised security any one of them may for the purpose of this section be regarded as the holder of the security unless contrary notice has been given to the Council by any other of them.

(3) The posting by the Council of an order for the payment of interest or a warrant in pursuance of this section shall as

PART VII
—cont.

respects the liability of the Council be equivalent to the delivery of the order or warrant to the registered holder of the authorised security.

(4) Every order or warrant so sent by post shall be deemed to be a cheque and the Council shall in relation thereto be deemed a banker within the Bills of Exchange Act 1882.

Receipts in
case of
minors.

87. If any money is payable by the Council to any employee (other than wages or salary) or creditor or the holder of any authorised security and the person entitled to such payment is a minor the receipt of the guardian shall be a sufficient discharge to the Council.

Payment of
pension etc.
of person of
unsound mind.

88.—(1) Subject to the provisions of this section where a person entitled to receive from the Council any sum to which this section applies is lawfully detained as a person of unsound mind in accordance with the Lunacy and Mental Treatment Acts 1890 to 1930 the Council may pay the whole of that sum or so much thereof as they think fit to the person having the care of the person so detained as aforesaid and may pay or apply the whole or so much as they think fit of the surplus (if any) thereof to or for the maintenance or benefit of the wife or husband or relations of the person so detained as aforesaid.

(2) Subject to the provisions of this section where a person entitled to receive from the Council any sum to which this section applies is in the opinion of the Council through mental infirmity incapable of managing his affairs the Council may pay or apply the whole or so much as they think fit of that sum to or for the maintenance or benefit of such person or of the wife or husband or relations of such person.

(3) This section applies to any sum payable by the Council to an employee or former employee or pensioner of the Council or person entitled to an allowance or other payment out of the superannuation fund of the Council or the widow or a child of a deceased employee or pensioner or person entitled to an allowance or other payment out of the superannuation fund of the Council by way of salary wages pension superannuation or other allowance gratuity or annuity or by way of repayment with or without interest of contributions made to any superannuation or other fund but the amount to be paid in pursuance of this section to or in respect of any such employee former employee pensioner or person shall not exceed one hundred pounds in any year.

(4) Not less than fourteen days before exercising their powers under this section for the first time in relation to any person the Council shall give to the court of protection notice of their intention in that behalf specifying the name and address of that person and the amount and nature of the sums in respect of which the Council intend to exercise the said power and in

relation to any such person the Council shall at the same time give notice to that person in a form approved by the court of protection:

PART VII
—cont.

Provided that the Council may with the approval of the court of protection exercise the powers of this section in respect of any person notwithstanding that the said period of fourteen days has not expired.

(5) If at any time the court of protection gives to the Council notice that it objects to the exercise by the Council of the said power in relation to any person the said power shall as from the date of the receipt by the Council of the notice cease to be exercisable by the Council in relation to that person unless and until the court of protection withdraws the notice.

(6) The Council shall be discharged from all liability in respect of any payment or application of money effected by them in the exercise of the powers of this section.

89. Notwithstanding anything in the Local Government Superannuation Acts 1937 to 1953 the Council shall not be required to make any payment by way of superannuation allowance or pension under those Acts or under the Pensions (Increase) Acts 1944 1947 1952 and 1956 or any other superannuation pension compensation or other such payment under any statutory authority to or for the benefit of any person unless satisfactory proof is given to the Council in such manner and at such times as they may from time to time require of the continued existence of such person.

As to proof
of continued
existence of
pensioners.

90. The salary wages fees and other payments paid or made to any person who is for the time being entitled to participate in the superannuation fund of the Council as an instructor at or for the purposes of an evening institute or for evening classes where such employment is in addition to his ordinary employment shall not be remuneration within the meaning of the Local Government Superannuation Acts 1937 to 1953 or any other enactment affecting the superannuation fund maintained by the Council under those Acts and the service of any such person in any such employment shall not be reckoned as service for any of the purposes of those Acts.

Additional
evening
instruction
excluded for
superannua-
tion.

91.—(1) The Council may pay to any of their officers who act in any of the following capacities:—

Officers of
Council
acting as
receivers etc.

- (a) as the receiver appointed by an order made under the Lunacy Act 1890;
- (b) as the administrator of the estate of a deceased person acting by virtue of a grant made to him as the nominee of the Council;
- (c) as a surety to a bond required by law from an officer acting in accordance with paragraph (a) of this subsection;

PART VII
—cont.

the amount of any sum forfeited by him to the Crown or the Principal Probate Registrar or the amount of any payment which such officer is liable to make by reason of his acting in the course of his duties as an officer of the Council in any such capacity as aforesaid.

(2) The Council may pay the amount of any premiums upon an insurance policy indemnifying an officer acting in one of the capacities mentioned in subsection (1) of this section against any act neglect or default whether his own or that of any other person occurring in the course of the receivership or administration.

(3) Any payments which the Council have power to make under the provisions of subsection (1) of this section and any of the risks referred to in subsection (2) of this section may be specified by the Council as specified risks in accordance with section 79 (General insurance fund) of this Act and that section shall be construed accordingly.

Recovery of
sums paid to
officers etc.

92. Where the Council have paid in advance to any officer or servant of the Council or to any officer or servant whose salary or wages are payable by the Council the amount of his salary or wages (as the case may be) and such officer servant or other person dies before the expiration of the period in respect of which such payment is made the Council shall not be required to demand the return of any portion not being more than ten pounds of such payment.

Determina-
tion of sums
for main-
tenance.

93. In any case in which the Council are empowered to recover the whole or any part of the cost incurred by them—

- (1) in respect of the maintenance or treatment or the maintenance and treatment of any person in any premises which are provided or maintained by the Council or to the cost of the provision or maintenance of which the Council contribute;
- (2) in respect of the maintenance of any person in any premises which are not provided or maintained by the Council or to the cost of the provision or maintenance of which the Council do not contribute; or
- (3) in respect of the maintenance of any child who is boarded out by the Council in any premises;

the Council for the purpose of ascertaining such cost may determine that two or more such premises (being premises used for comparable purposes) shall be regarded as one and that such cost shall be ascertained by reference to the expenses incurred in respect of such premises regarded as one.

Modification
of mortgages
by endorse-
ment under
hand.

94. Notwithstanding anything in any enactment or in any rule of law or otherwise to the contrary where it is agreed between the Council and a person at any time entitled to any mortgage granted by the Council to extend the time for repayment of the

principal moneys secured by such mortgage or to alter the rate of interest payable by the Council on the principal moneys so secured and not repaid or both to extend such time and to alter such rate of interest effect may be given thereto by an endorsement in writing under the hands of such person (or in the case of a corporate body by the duly authorised representative of that body) and of the clerk of the Council or his duly authorised representative endorsed on the deed by which such mortgage was originally granted and the provisions of any such endorsement shall be deemed to be incorporated in the said deed and shall as from the date specified in such endorsement operate and take effect accordingly.

PART VII
—cont.

95. Section 21 of the Private Street Works Act 1892 in its application to the county shall have effect as if in subsection (2) thereof for the words “in such” there were substituted the words “such moneys shall be paid into the county fund or general rate fund as the case may require or be applied in such other”.

Application
of private
street works
repayments.

96. If a justice is satisfied on complaint by any officer of a local authority duly authorised that any person is quitting or about to quit any premises in their district and has failed to pay on demand any general rate which may be due from him and intends to evade payment of the same by departing from the said premises the justice may in addition to issuing a summons for non-payment of the same issue a warrant under his hand authorising the persons named therein forthwith to enter the premises and to seize sufficient goods and chattels of the person in default to meet the claim of the local authority and to detain them until the complaint is determined upon the return of the summons.

Recovery of
rates etc.
from persons
removing.

97.—(1) Where the owner of any hereditament has agreed with the occupier thereof that the owner shall pay the general rate charged on such hereditament the owner shall be liable to pay to the local authority so much of any payment in respect of rent received by him from the occupier as shall represent the proportion of rate included in such payment and so much of such payment may on proof of such agreement be recovered by the local authority from the owner in the same manner and subject to the same conditions under and subject to which rates are recoverable from occupiers of rated hereditaments.

Recovery of
rates from
certain owners.

The remedy of the local authority under this section shall be in addition and without prejudice to their other remedies for the recovery of rates.

(2) For the purposes of this section the expression “owner” in relation to a hereditament means the person who is entitled to receive the rent payable in respect thereof.

PART VII
—cont.

(3) This section shall not apply to any hereditaments to which subsection (1) of section 11 of the Rating and Valuation Act 1925 applies by virtue of a resolution of the local authority.

As to recovery of rates from tenants and lodgers.

98. For the purposes of section 15 of the Rating and Valuation Act 1925 the rates due from the person rated for any hereditament within the county shall be deemed to be in arrear if such rates are not paid within two months after lawful demand in writing has been made for the same.

PART VIII
MISCELLANEOUS

Evidence of appointments authority etc.

99.—(1) In any proceedings under any enactment—

- (a) a document purporting to be certified by the clerk of the Council as a copy of a resolution order or report passed or made by the Council or by any committee thereof on a specified date shall be evidence that that resolution order or report was duly passed or made by the Council or that committee on the said date;
- (b) a document purporting to be so certified as a copy of a minute duly drawn up entered and signed in accordance with paragraph 3 of Part V of the Third Schedule to the Act of 1933 of the proceedings of a meeting of the Council or of any committee thereof on a specified date shall be evidence to the same extent as the original minute;
- (c) a document purporting to be so certified as a copy of the appointment of or of any authority given to an officer of the Council or any committee thereof on a specified date shall be evidence that such appointment or authority was duly made or given by the Council or that committee on the said date.

(2) In this section the expression “ officer ” includes a servant solicitor or agent.

(3) Section 286 of the Act of 1936 shall cease to apply to the Council.

(4) The provisions of this section shall apply to the police authority and shall have effect with any necessary modifications including the substitution of the expression “ police authority ” for “ Council ”.

Authorisation of appearance of Council's officers in legal proceedings.

100. A resolution of the Council under section 277 of the Act of 1933 may refer either to an officer by name or to the holder or holders for the time being of the office or offices stated therein.

As to minutes of Council meetings etc.

101.—(1) Notwithstanding anything contained in paragraph 3 of Part V of the Third Schedule to the Act of 1933 or in any other enactment or rule of law to the contrary the minutes of the

proceedings of meetings of the Council or of any committee or sub-committee thereof may be recorded on loose leaves consecutively numbered the minutes of the proceedings of any meetings being signed and each leaf comprising those minutes being initialled at the same or next ensuing meeting of the Council or committee or sub-committee as the case may be by the person presiding thereat and any minutes purporting to be so signed shall be received in evidence without further proof.

PART VIII
—cont.

(2) The provisions of this section shall apply to the police authority and shall have effect with any necessary modifications including the substitution of the expression "police authority" for "Council".

102.—(1) A committee lawfully authorised by the Council to exercise any powers of the Council under any enactment may subject to any direction of the Council appoint such sub-committees consisting either wholly or partly of members of the committee as the committee think fit and subject as aforesaid may delegate with or without restrictions or conditions any of their functions to a sub-committee so appointed.

Delegation of
powers to
sub-com-
mittees.

(2) Except in pursuance of powers conferred by any enactment a majority of the members of any such sub-committee shall be members of the Council.

(3) The powers of this section shall be in addition to the powers of any committee of the Council to appoint a sub-committee under any other enactment.

103. For the purpose of section 130 of the Local Government Insurance of Act 1948 (which provides for the insurance of members against personal accident while engaged on business)—

(1) a member of the Council who is appointed or nominated by the Council as a member of another authority or body shall while engaged on the business of such other authority or body be deemed to be engaged on the business of the Council;

(2) a member of a local authority who is appointed or nominated by the Council or the local authority or another body (being an association or group of all or some of the local authorities in the county) as a member of the Kent Joint Advisory Water Committee or a committee or sub-committee of the Council shall while engaged on the business of the Kent Joint Advisory Water Committee or such committee or sub-committee of the Council be deemed to be engaged on the business of the Council:

PART VIII
—cont.

Provided that the Council shall not in pursuance of the said section 130 insure a member in respect of personal accidents while engaged on the business of another authority or body if such other authority or body themselves insure such member against such accidents.

Chain and
badge of
office.

104. The Council may provide and maintain a chain and badge of office for their chairman and may from time to time make additions to such chain:

Provided that the chain and badge of office and any additions to such chain provided by the Council under the powers of this section shall remain the property of the Council.

Power to make
allowances for
removing.

105. Where a person has to remove from a house in consequence of its acquisition by the Council or of any other action taken by them the Council may pay to him such reasonable allowances as they think fit towards his expenses in removing.

Restrictions on
use of
loudspeakers
in streets.

106.—(1) No person shall for the purpose of advertising any trade or business or any part of a trade or business operate or cause or suffer to be operated any loudspeaker when such loudspeaker is in any street in the county.

(2) No person shall operate or cause or suffer to be operated any loudspeaker for any purpose when such loudspeaker is in any street in a district unless he shall have given notice to the superintendent of police of the appropriate division at least forty-eight hours before such loudspeaker is operated.

(3) Any person who contravenes the provisions of this section shall be liable to a fine not exceeding ten pounds.

(4) This section shall not apply to the use of a loudspeaker—

(a) by the Council or a local authority or the police or a fire brigade in the execution of their duty or in case of emergency;

(b) in connection with a parliamentary or local government election;

(c) by the commission for the purpose of announcements to their passengers or staff at any station or depot of the commission or by any persons operating public service vehicles for the purpose of announcements to their passengers whilst in any of their vehicles or any of their stations or depots or for communications between their staff;

(d) by a travelling showman in any part of a street while such part thereof is being used as a pleasure fair and such fair is open to the public;

(e) by statutory undertakers for the purpose of announcements in case of emergency affecting their undertaking; or

(f) on a vehicle constructed or adapted for use for the conveyance of any perishable commodity for human consumption (including ice-cream) where—

(i) the loudspeaker is used in conjunction with an electrically operated instrument to produce sounds (not being words); and

(ii) the main purpose of operating the said loudspeaker is to notify members of the public that the driver of the vehicle is available to sell to members of the public such commodity conveyed by the vehicle; and

(iii) the loudspeaker is not operated so as to be a nuisance.

For the purposes of this paragraph “ice-cream” includes any similar commodity and the commodity known as “water-ice”.

(5) Nothing in this section shall apply to the use of a loudspeaker forming part of a wireless receiving set on or inside a motor vehicle so long as such loudspeaker is used only for the private purposes of the occupants of the said vehicle or for communication with them in connection with their trade or business and is not used so as to be an annoyance or nuisance to persons in a street.

(6) In this section the expression “loudspeaker” includes an amplifier or similar instrument.

107.—(1) The Council may hire from the local authority of an urban district and such local authority may let on hire to the Council floral decorations for use on premises owned occupied or maintained by the Council and may make such charges therefor as they think fit:

Provided that no floral decorations let on hire under the provisions of this section shall be used otherwise than by the Council in connection with the discharge of their powers and duties but for the purposes of this section such powers and duties shall not include the reletting on hire of any such floral decorations as aforesaid.

(2) In this section the expression “floral decorations” includes plants and flowers.

108.—(1) In this section—

the expression “child in the care of the Council” means a person under the age of eighteen years who for the time

PART VIII
—cont.

Deeds etc.
of apprenticeship.

PART VIII
—cont.

being is either in the care of the Council under section 1 or subsection (4) of section 6 of the Children Act 1948 or committed to their care as a fit person by an order of any court under the Children and Young Persons Act 1933; and

the expression “deed of apprenticeship” includes any instrument by means of which such a person is apprenticed.

(2) The Council may in any deed of apprenticeship relating to a child in the care of the Council or in any document being an assignment of or supplemental to such deed undertake the obligations of a guarantor and any other obligations and may fulfil such obligations notwithstanding that—

- (a) such obligations may continue beyond the date upon which the child will attain the age of eighteen years;
- (b) the child may cease to be a child in the care of the Council on or before such date; and
- (c) (in the case of a document being an assignment of or supplemental to such deed) the person apprenticed by such deed shall already have attained the age of eighteen years.

Return of
library books
etc

109.—(1) In this section—

the expression “a library” means any library maintained under the Public Libraries Acts 1892 to 1919 by the Council and any library maintained under the said Acts any part of the cost of the maintenance of which is borne by the Council;

the expression “article” includes a book music (whether printed or manuscript) pamphlet manuscript gramophone record or specimen of art.

(2) Any person borrowing an article from a library shall not be entitled to retain the same after the expiration of such period (not being in the case of a book less than fourteen days) after the date of the borrowing thereof as may be prescribed in relation to that article by the Council and for the purposes of this provision the Council may prescribe different periods for different kinds of books or articles.

(3) Without prejudice to any other powers with respect to articles borrowed from a library the Council may recover from any person failing to return any article borrowed from that library within such period as may be prescribed as aforesaid such reasonable sum as they may prescribe in respect of each day or each week or part of a week during which he fails to return the article together with any expenses incurred in sending to him notices in respect of the article:

Provided that in the case of a book the sum prescribed as aforesaid shall not exceed sixpence in respect of any week or part of a week during which the book is not returned as aforesaid.

PART VIII
—cont.

(4) Where the Council become entitled under this section to recover any sum from any person that person shall not have any right until that sum has been duly paid to borrow any other article from any library maintained by the Council.

110.—(1) The Council may provide and maintain recreational social and welfare facilities (including canteens) for their employees. Recreational and other facilities for employees.

(2) For the purposes aforesaid the Council may—

- (a) acquire buildings or acquire or with the consent of the Minister appropriate land and erect buildings thereon;
- (b) with the consent of the Minister adapt any premises or erect any buildings on any land belonging to them but not already appropriated for such purposes;
- (c) make such charges as they think fit for the use of such premises; and
- (d) make regulations for the management of such premises.

(3) No power conferred upon the Council by this section shall be exercised in such a manner—

- (a) as to be at variance with any trust subject to which any land or building is held managed or controlled by the Council without an order of the High Court or of the Charity Commissioners or of the Minister of Education or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of the donor or that other person; or
- (b) as to contravene any covenant or condition (other than a covenant or condition which was subsisting immediately before the date of the gift or lease to the Council) subject to which a gift or lease of any land or building has been accepted by or granted to the Council without the consent of the donor grantor lessor or other person entitled in law to the benefit of the covenant or condition.

111.—(1) The Council may purchase and store and supply to an authority any goods or materials required for the discharge of the functions of that authority and for those purposes the Council and any authority may enter into and carry into effect agreements and do all such other acts as may be necessary or convenient: Supply of goods by Council to other authorities.

Provided that the Council shall not in pursuance of this section supply building materials to an authority for the purpose of the erection alteration or extension or repair and maintenance of houses or other buildings by that authority.

PART VIII
—cont.

(2) For the purposes of this section the expression " authority " means an authority discharging functions within the county of Kent being—

- (a) the council of the city of Canterbury;
- (b) a local authority or a joint committee appointed by two or more local authorities and the Canterbury and District Joint Education Committee;
- (c) any statutory undertakers or other body of persons discharging functions in pursuance of any enactment.

Provision of reciprocal services etc. by Council and local authority.

112.—(1) For the better performance of their respective powers or duties within the county of Kent provision may be made by agreement between the Council and a local authority for the taking by either party thereto of action of the following kinds:—

- (a) the undertaking by one party for the other of any administrative clerical professional or technical services;
- (b) the use or maintenance by one party of any vehicle plant equipment or apparatus of the other party and if it appears convenient the services of any staff employed in connection therewith;
- (c) the carrying out of works of maintenance by one party in connection with land or buildings for the maintenance of which the other is responsible.

(2) Where provision could be made either by an agreement under this section or by virtue of the powers conferred by section 271 of the Act of 1936 or by virtue of the powers conferred by section 105 of the Road Traffic Act 1930 it shall be made under the said section 271 or under the said section 105 (as the case may be) and not under this section.

(3) In its application to the use of any mechanical road-making equipment or plant the provisions of subsection (1) of this section shall extend to enable the Council to let for hire such equipment or plant to any local authority or any person carrying out works for or on behalf of the Council.

Powers to use ladders etc. for entry or inspection.

113.—(1) Any power conferred on an officer of the Council by any enactment to enter upon and inspect any building or works in course of construction shall include a power to use free of expense for the purpose of the entry or inspection any ladders scaffolding and plant in or about the building or works.

(2) If the builder of or contractor for any such building or works or any person employed by him in or about the building or works—

- (a) refuses to give to such an officer all reasonable assistance in the exercise of the powers conferred by this section; or
- (b) otherwise obstructs such an officer in the exercise of those powers;

he shall be liable to a fine not exceeding five pounds.

(3) This section shall come into operation on the first day of June nineteen hundred and fifty-nine.

PART VIII
—cont.

(4) The Council shall forthwith after the passing of this Act cause public notice to be given of the effect of the foregoing provisions of this section by advertisement in two or more newspapers circulating in the county and otherwise in such manner as the Council think fit.

114.—(1) Any person who for the purpose of obtaining for himself or for any other person any of the benefits or advantages hereinafter mentioned—

False
statements to
obtain
benefits.

- (a) knowingly makes to the Council or to a local authority or to any of their employees a false statement or false representation relating to his or that other person's need for the benefit or advantage or ability to pay a rent or make any other payment; or
- (b) produces or furnishes or knowingly allows to be produced or furnished to the Council or to a local authority or to any of their employees any document or information relating to the matters aforesaid which he knows to be false in a material particular;

shall be liable to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding three months or to both such fine and imprisonment.

(2) The benefits or advantages hereinbefore referred to are—

- (a) the occupation of any house belonging to the Council;
- (b) a rebate of the rent of any such house;
- (c) a reduction in the amount of any payment due to the Council by virtue of the following enactments or of regulations made thereunder or the remission of any such payment:—
 - (i) the Children and Young Persons Act 1933;
 - (ii) the Education Acts 1944 to 1953;
 - (iii) the Children Act 1948;
- (d) any award grant contribution or payment made by the Council or any article provided by the Council under the Education Acts 1944 to 1953 or under or by virtue of any regulations made under those Acts; or
- (e) any advance from the Council by way of mortgage under the Small Dwellings Acquisition Acts 1899 to 1923 or the Housing (Financial Provisions) Act 1958.

(3) If any person is convicted of an offence under this section the court may—

- (a) terminate the tenancy of the house of which occupation had been obtained and order possession thereof to be given to the Council;
- (b) order the person convicted to pay to the Council the amount of the rebate or reduction obtained by him;

PART VIII
—cont.

(c) order the person convicted to make such payments as the court may think just to the Council in respect of—

(i) the reduction in the amount of any payment referred to in paragraph (c) of the last foregoing subsection or the remission thereof; or

(ii) any award grant contribution payment or article referred to in paragraph (d) of that subsection.

(4) For the purposes of this section the expression “house” includes any part of a house which is occupied or intended to be occupied as a separate dwelling.

Welfare of
aged and
handicapped
persons.

115.—(1) The Council may make arrangements for—

(a) providing aged persons and persons to whom section 29 of the National Assistance Act 1948 applies with meals and for providing aged persons with other domiciliary services in their own homes;

(b) providing aged persons with recreational facilities in their own homes or elsewhere.

(2) The Council may recover from persons availing themselves of any service provided under this section such charges (if any) as having regard to the cost of the service the Council may determine whether generally or in the circumstances of any particular case.

(3) This section shall apply to such aged persons and such persons to whom the said section 29 applies as are resident in the county.

Prohibition
of tuberculous
persons from
handling food.

116.—(1) As from the appointed day in any district if the medical officer of health of that district certifies—

(a) that a person is suffering from tuberculosis of the respiratory tract and is in an infectious state; and

(b) that he is occupied in the cooking preparation or handling of food in a district intended for consumption by persons other than himself or members of his household; and

(c) that his continuance in that occupation would in the judgment of the said medical officer be a danger to the health of other persons;

the said medical officer may request him in writing to discontinue his occupation as aforesaid.

(2) If any person requested as aforesaid complies with the request the local authority may if they think fit compensate him for any loss occasioned by his compliance with the request.

(3) If any person requested as aforesaid fails to comply with the request a magistrates' court may on the application of the

local authority order him to comply with the request and may by any such order if it thinks fit direct that such compensation (if any) as it thinks equitable shall be paid to him by the local authority.

(4) If any person fails to comply with any such order he shall be liable to a fine not exceeding five pounds and to a daily fine not exceeding forty shillings.

(5) This section shall not apply to an employment or occupation to which the Public Health (Prevention of Tuberculosis) Regulations 1925 apply.

117.—(1) The provisions of this section shall have effect for the Closing of prevention of tidal flooding through such an opening as is flood doors. described in subsection (2) of this section in flood protection works in the county maintained by a local authority a coast protection board established under the Coast Protection Act 1949 or a river board in pursuance of the statutory powers in that behalf of the local authority or either such board (as the case may be).

(2) The opening referred to in the last subsection is one which—

(a) is provided for access to any land or premises; and

(b) is furnished with a door or gate or dam boards or any similar structure (hereinafter referred to as “flood doors”) for closure of the opening against tidal flooding.

(3) The local authority may by notice give directions to the occupier of any land or premises in their district on which is situated an opening as aforesaid to close the flood doors at such times and keep them securely closed throughout such periods as may be specified in the notice and in particular to keep the flood doors securely closed whenever necessary for preventing the entry of tidal waters.

(4) Notwithstanding any such directions the flood doors to which they relate may be opened on such occasions as may be necessary to afford access to or from any land or premises unless by so doing tidal waters are allowed to enter through the opening.

(5) If flood doors have not been closed in compliance with directions given under this section and tidal flooding is threatened any authorised officer of the local authority who gave the directions may enter and close the flood doors or cause them to be closed.

(6) The local authority may from time to time by notice to the occupier of the land or premises alter or revoke any directions given by them under subsection (3) of this section.

(7) Any person aggrieved by any directions of the local authority under subsection (3) of this section or by any alteration or revocation of such directions may appeal to a magistrates' court on the grounds that the directions are unreasonable in character or extent.

PART VIII
—cont.

(8) The occupier of any land or premises to whom directions have been given by notice under this section shall keep a copy of such directions displayed on the land or premises.

(9) Any directions given under this section shall be binding upon the occupier for the time being of the land or premises and any such directions shall be treated as a local land charge for the purposes of the Land Charges Act 1925.

Devolution of
certain
entertainment
licences in
case of death
of licensee.

118. Upon the death of the holder of a licence granted in respect of a place or premises in the county under the Home Counties (Music and Dancing) Licensing Act 1926 the Cinematograph Acts 1909 and 1952 or the Theatres Act 1843 the person carrying on at the place or premises the functions in respect of which the licence was granted or acting or purporting to act as the actual and responsible manager of the place or premises in respect of which the licence was granted shall be deemed to be the holder of the licence until the licence has been transferred to some other person.

Powers as to
hop-pickers
and persons
engaged in
similar work.

119.—(1) As from the appointed day in any district to which this section applies the local authority of that district may make byelaws for securing that accommodation provided or used for the lodging of hop-pickers and other persons engaged temporarily in picking gathering or lifting fruit flowers bulbs roots or vegetables within their district shall not be occupied between such dates as may be prescribed by such byelaws.

(2) An owner of accommodation to which byelaws made in pursuance of this section apply may in the event of such accommodation being occupied in contravention of those byelaws make complaint to a magistrates' court and thereupon the court shall by its warrant in the form set out in the schedule to the Small Tenements Recovery Act 1838 or in a form to the like effect order vacant possession of the accommodation to be given to the complainant within such period not being less than two weeks nor more than four weeks as the court shall determine.

(3) As respects byelaws made under this section the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Minister.

(4) This section applies to the rural districts of Cranbrook Hollingbourn Maidstone Malling Sevenoaks Swale and Tonbridge.

Exemption of
certain areas
from county
contributions
for coroners
and weights
and measures.

120. After the end of March nineteen hundred and fifty-nine and during such time as the mayor aldermen and burgesses of the borough of Dover exercise functions relating to coroners and weights and measures in the urban district of Broadstairs and Saint Peters and in the parish of Acol in the rural district of Eastry and the parish of Ringwould in the rural district of Dover the

said urban district and the said parishes shall not be chargeable for expenditure by the Council in respect of the coroners of the county or the execution of the Weights and Measures Acts 1878 to 1936.

PART VIII
—cont.

121. Whereas—

(1) under and in accordance with the provisions of the Private Street Works Act 1892 the mayor aldermen and burgesses of the borough of New Romney (hereafter in this section referred to as “the corporation”) executed certain private street works in the years and in the roads mentioned in the Third Schedule to this Act:

Power for
New Romney
Corporation
to sell certain
lands.

(2) under section 13 of the Private Street Works Act 1892 the corporation became entitled to charges on the lands fronting adjoining or abutting on the said roads including the lands described in the said Third Schedule (in this section referred to as “the specified plots”) the owners of which after diligent inquiry have not been found but the corporation have not exercised the powers conferred upon them by the said section for the purpose of enforcing the charges:

(3) doubts have arisen whether owing to the lapse of time the corporation are now entitled to exercise the powers conferred by the said section for the purpose of enforcing the charges upon the specified plots in respect of the works executed as aforesaid and it is expedient that they should be authorised to exercise the powers of sale as by this section provided:

Now the following provisions shall have effect:—

As from the appointed day and subject to the provisions of section 123 (Application and date of operation of two foregoing sections) of this Act the corporation shall have power to sell the specified plots described in the said Third Schedule in manner provided by the Law of Property Act 1925 as if they were a mortgagee under a mortgage made by deed and the specified plots were the mortgaged property under such deed and the events and conditions which under that Act would entitle such mortgagee to exercise the power of sale conferred by that Act with respect to such mortgaged property had occurred and been fulfilled and all provisions of that Act with respect to a sale of mortgaged property by the mortgagee thereof shall so far as applicable and with any necessary modifications extend and apply to a sale by the corporation of the specified plots in pursuance of this section:

PART VIII
—cont.

Provided that—

- (1) for the purposes of such application of section 105 of the said Act of 1925 the expression “the mortgage money interest and costs and other money if any due under the mortgage” shall be construed to mean with respect to each of the specified plots the sum apportioned to that plot in the final apportionment made in pursuance of the Private Street Works Act 1892 in respect of certain private street works executed and completed on the date mentioned in the description of that plot together in each case with interest on the said sum for a period of six years at the rate of five per centum per annum or at such other rate as may have been fixed by order of the Minister under section 77 of the Public Health Act 1925;
- (2) the residue referred to in the said section 105 after payment and discharge of the items first and secondly in that section mentioned instead of being forthwith paid to the persons entitled to the specified plots respectively or authorised to give receipts for the proceeds of the sale thereof shall be paid into a deposit account at a bank in the name of the corporation and accumulated in such account at interest pending receipt by the corporation of any claim by any person lawfully entitled thereto; and
- (3) if no such claim shall be received by the corporation within five years after the date of the sale and verified to their satisfaction in respect of the whole or any part of the amount accumulated in such deposit account the corporation after giving such public notice (if any) as the Minister may require shall apply the sum for which no claim shall be so received and verified to such purposes and in such manner as the Minister may permit or direct.

Provisions
applicable
to borough
of Hythe.

122. As from the appointed day the following provisions shall have effect subject to the provisions of the next succeeding section:—

- (1) The following sections of the Hythe Corporation Act 1905 shall be and are hereby repealed:—

Section 43 (As to hoardings and other structures used for advertising purposes);

Section 44 (Restriction on advertising vehicles);

Section 45 (As to appeals);

Section 46 (Skysigns).

- (2) The council of the borough of Hythe shall be deemed to have passed a resolution on the eighth day of March

eighteen hundred and ninety-nine in pursuance of section 3 of the Private Street Works Act 1892 adopting the said Act of 1892 and for the purpose of such resolution—

PART VIII
—cont.

(a) the said council shall be deemed to have duly complied with all the provisions of the said section 3; and

(b) the twentieth day of April eighteen hundred and ninety-nine shall be deemed to be the date fixed by such resolution as the date upon which the said Act of 1892 extended to the borough of Hythe.

123.—(1) Section 121 (Power for New Romney Corporation to sell certain lands) and section 122 (Provisions applicable to borough of Hythe) of this Act shall come into operation on the first day of June nineteen hundred and fifty-nine or on such later date as may be determined under section 5 (The appointed day) of this Act.

Application
and date of
operation of
two foregoing
sections.

(2) At any time before the first day of April nineteen hundred and fifty-nine a poll may be demanded with respect to the question whether either of the sections referred to in the foregoing subsection shall come into operation in the borough concerned by the council thereof or by a requisition in writing signed by not less than one hundred persons registered in accordance with the provisions of the Representation of the People Acts as local government electors in that borough and delivered to the mayor thereof.

(3) If a poll is demanded in pursuance of this section the mayor shall proceed by poll to take the opinion of the electors upon the question upon which the poll is demanded unless the demand is withdrawn.

(4) The provisions contained in subsection (3) of section 255 of the Act of 1933 and in paragraphs 12 to 19 of the Ninth Schedule to that Act and the regulations made and the forms prescribed under those provisions shall so far as applicable apply to and in respect of the taking of a poll under this section.

(5) If the result of a poll taken under this section is against either of the said sections coming into operation that section shall not come into operation except as provided in the next succeeding subsection.

(6) If the result of any poll taken under this section is against either of the said sections coming into operation the council of the borough concerned may at any time after the expiration of three years from the date on which the last poll was taken determine that

PART VIII
—cont.

the question shall again be submitted to the local government electors and in that case a poll shall again be taken in accordance with the provisions of this section.

(7) If in pursuance of this section a poll is taken in either of the boroughs concerned the town clerk thereof shall immediately after the result has been declared give notice of such result to the Secretary of State the Minister the Minister of Transport and Civil Aviation and the Council.

(8) A certificate purporting to be signed by the said town clerk stating—

(a) the result of a poll demanded under this section in respect of his borough; or

(b) that no such poll has been demanded;

shall be evidence of the statement contained therein.

PART IX

PROTECTIVE PROVISIONS

Crown rights

124. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular and without prejudice to the generality of the foregoing nothing herein contained authorises the Council to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose.

For protection
of Postmaster-
General.

125.—(1) Where pursuant to section 22 (Adjustment of boundaries of streets) of this Act the highway authority enter into an agreement with a person having a legal interest in land adjoining any street repairable by such authority for the conveyance to that person of the site of any part of the street and immediately before the date on which the site ceases to be part of the street there was under in upon over along or across such site any telegraphic line belonging to or used by the Postmaster-General the Postmaster-General shall continue to have the same powers in respect of that line as if such site had remained part of the street but nothing in Part I of the Act of 1950 shall have effect in relation to those powers:

Provided that if any person in whom such site is vested desires that such telegraphic line should be altered paragraphs (1) to (8)

of section 7 of the Telegraph Act 1878 shall apply to the alteration and accordingly shall have effect subject to any necessary modifications as if references therein to undertakers included references to the said person desiring the alteration.

PART IX
—cont.

(2) As between the highway authority and the Postmaster-General nothing in the foregoing subsection shall affect the operation of Part II of the Act of 1950 or the rights of the Postmaster-General and the highway authority thereunder.

(3) Where any highway or part of a highway is stopped up in pursuance of an order made under section 28 (Stopping up and diversion of highways) of this Act the following provisions shall unless otherwise agreed in writing between the highway authority and the Postmaster-General have effect in relation to any telegraphic line belonging to or used by the Postmaster-General which is under in upon over along or across such highway or part of a highway at the time of such stopping up:—

- (a) The power of the Postmaster-General to remove the line shall be exercisable notwithstanding the stopping up of the highway or part of the highway so however that the said power shall not be exercisable as respects the whole or any part of the line after the expiration of a period of three months from the date mentioned in subsection (4) of this section unless before the expiration of that period the Postmaster-General has given notice to the highway authority of his intention to remove the line or that part thereof as the case may be;
- (b) The Postmaster-General may by notice to the highway authority in that behalf abandon the said line or any part thereof and shall be deemed as respects the line or any part thereof to have abandoned it at the expiration of the said period of three months unless before the expiration of that period he has removed it or given notice of his intention to remove it;
- (c) The Postmaster-General shall be entitled to recover from the highway authority the expense of providing in substitution for the line and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the line a telegraphic line in such other place as the Postmaster-General may require;
- (d) Where under paragraph (b) of this subsection the Postmaster-General abandons the whole or any part of a telegraphic line it shall vest in the highway authority and the provisions of the Telegraph Acts 1863 to 1954 shall not apply in relation to the line or part in question as respects anything done or omitted after the abandonment thereof.

PART IX
—cont.

(4) As soon as the whole or any part of any highway has been stopped up the highway authority shall send by post to the Postmaster-General a notice informing him of such stopping up and the period of three months mentioned in subsection (3) of this section shall commence to run from the date on which such notice is sent.

(5) In this section the expressions “alter” and “alteration” have the same meanings as in the Telegraph Act 1878.

For protection
of certain
statutory
undertakers.

126. For the protection of the undertakers the following provisions shall unless otherwise agreed in writing between the appropriate authority and the undertakers concerned apply and have effect:—

(1) In this section unless the subject or context otherwise requires—

“apparatus” means—

(a) in relation to the London Electricity Board the South Eastern Electricity Board or the Central Electricity Generating Board electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to or maintained by any of such undertakers;

(b) in relation to the South Eastern Gas Board mains pipes or other apparatus belonging to or maintained by the board;

(c) in relation to such of the undertakers as are statutory water undertakers mains pipes or other apparatus belonging to or maintained by any of such undertakers;

and includes any works constructed for the lodging therein of apparatus;

“appropriate authority” means the Council the highway authority the local authority or the police authority as the case may require and includes any of their officers and any person acting on their behalf or with their consent;

“in” in a context referring to apparatus includes under over across along or upon;

“operational land” has the same meaning as in section 119 of the Act of 1947;

“position” includes depth;

“undertakers” means—

the London Electricity Board;

the South Eastern Electricity Board;

the Central Electricity Generating Board;
the South Eastern Gas Board; and
the statutory water undertakers who are authorised
to supply water in any part of the county;
or any of them:

- (2) Nothing in section 18 (Trees grass verges and gardens) of this Act shall affect the rights of the undertakers with respect to any apparatus (including the placing of apparatus) in any grass verge garden or space:

Provided that in exercising such rights the undertakers shall not cause or permit except in the case of necessity horses or vehicles to enter upon any such verge or space which is maintained in an ornamental condition or mown or any garden:

- (3) Nothing in the following sections of this Act shall relieve the appropriate authority or any person acting by the requirement of the appropriate authority from liability for damage caused by them or him to any apparatus in the exercise of the powers of the said sections and the appropriate authority or such person shall so exercise those powers as not to render unreasonably inconvenient the access to any apparatus:—

Section 18 (Trees grass verges and gardens);

Section 26 (Piping etc. of roadside ditches);

Section 27 (Guard rails in streets);

Section 30 (Fencing of forecourts);

Section 31 (Milk stands in roads);

Section 35 (Hoards to be set up during building operations);

Section 38 (Fencing and lighting of obstructions in highways);

Section 53 (Power to drive on footpaths for certain purposes);

Section 59 (Police telephone call boxes and shelters):

- (4) Whenever the appropriate authority in the exercise of the powers of section 22 (Adjustment of boundaries of streets) of this Act shall give up land forming part of a street in exchange for other land and there is in such first-mentioned land any apparatus the appropriate authority shall give notice in writing to the undertakers of such exchange with a plan showing the position and dimensions of the portion of the street so exchanged

PART IX
—cont.

and the undertakers shall notwithstanding any agreement entered into under the said section continue to have the same powers and rights in respect of any apparatus remaining in the land previously forming the site of the street as if such land had continued to be part of the street or the undertakers may and if reasonably so required by the appropriate authority shall alter the position of such apparatus to or provide and lay or place new apparatus in such other position in the street as altered under the said powers as may be reasonable:

- (5) Whenever by virtue of the provisions of section 28 (Stopping up and diversion of highways) of this Act any highway or part of a highway in which any apparatus is situate is stopped up or diverted the undertakers shall notwithstanding such stopping up or diversion continue to have the same powers and rights in respect of any apparatus remaining in the highway or part of a highway so stopped up or diverted as if it had remained a highway or may and if reasonably so required by the appropriate authority shall—

(a) remove the apparatus and relay or replace it in the highway (if any) substituted for the highway or part of a highway so stopped up or diverted or in such other position as the undertakers may reasonably determine; or

(b) provide and lay or place other apparatus in such substituted highway or in such other position as aforesaid in lieu of such existing apparatus:

- (6) The appropriate authority shall repay to the undertakers the reasonable expenses incurred by the undertakers in or in connection with—

(a) the alteration of the position of any apparatus and the provision laying or placing of new apparatus under the provisions of paragraph (4) of this section; or

(b) the removal and relaying or replacing of any apparatus and the provision and laying or placing of any new apparatus under the provisions of paragraph (5) of this section;

and the reasonable costs of and incidental to—

(i) the cutting off of any apparatus from any other apparatus; and

(ii) any other work or thing rendered reasonably necessary in consequence of any such operations as are referred to in this paragraph:

Provided that subsections (3) and (4) of section 23 of the Act of 1950 (which imposes limitations on undertakers' rights to payment) shall so far as applicable extend and apply to any payment to be made by the appropriate authority under sub-paragraphs (a) or (b) of this paragraph as if the works hereinbefore in this paragraph mentioned were such undertakers' works as are referred to in the said subsection (3) and as if in that subsection for the words "specified as so necessary in a specification of the works settled under Part I of the Fourth Schedule to this Act or agreed so to be by the promoting authority" there were substituted the words "agreed or settled by arbitration under section 126 (For protection of certain statutory undertakers) of the Kent County Council Act 1958":

- (7) Before the appropriate authority give any consent pursuant to section 33 (Pavement lights ventilators pipes etc.) or section 37 (Restriction on buildings under footways) of this Act they shall give at least twenty-eight days' notice to the undertakers concerned of their intention to do so and any such consent shall contain such conditions as may be required to secure that the owner or occupier of premises or person to whom such consent is given shall comply with the reasonable requirements of the undertakers for the protection of their apparatus:
- (8) Before the appropriate authority grant any licence under section 36 (Licence to erect scaffolding) of this Act they shall give at least seven days' notice to the undertakers concerned of their intention to do so and any such licence shall contain such conditions as may be required to secure that the person to whom such licence is granted shall comply with the reasonable requirements of the undertakers for the protection of their apparatus:
- (9) Nothing in section 63 (Prescription of signs etc. to be used on certain buildings) of this Act shall authorise the appropriate authority to require the undertakers to affix on any building or part of a building on operational lands of those undertakers any sign symbol or notice:
- (10) (a) Any difference which may arise between the appropriate authority and the undertakers under this section shall be referred to arbitration;
- (b) In settling any difference under this section the arbitrator shall have regard to any duty or obligation which the undertakers may be under in respect of any apparatus

PART IX
—cont.

and may if he thinks fit require the appropriate authority to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the apparatus is used.

For protection
of
conservators
of river
Medway.

127. Nothing in this Act contained shall by implication or otherwise extend or be construed to extend to defeat lessen prejudice alter impair take away or affect any estate property right title interest privilege or power in any wise vested in or enjoyed by the conservators of the river Medway.

For protection
of land
drainage
authorities.

128.—(1) The powers of subsection (1) of section 26 (Piping etc. of roadside ditches) of this Act shall not be exercised in relation to any watercourse or ditch vested in or under the control of a land drainage authority without the consent in writing of that authority.

(2) Any consent given by a land drainage authority under this section may be given subject to such reasonable terms and conditions as the authority may think fit but any consent required under this section shall not be unreasonably withheld and any question whether such consent is or is not unreasonably withheld or whether any terms or conditions are or are not reasonable shall be determined by the Minister of Agriculture Fisheries and Food.

For protection
of port
authority.

129. The following provisions for the protection of the port authority shall unless otherwise agreed in writing between the Council or the highway authority concerned as the case may be and the port authority apply and have effect:—

(1) Except with the previous consent in writing of the port authority neither the Council nor any other person under or by virtue of any provision in Part II (Lands) of this Act or of any enactment incorporated with or applied for the purposes of the said Part II shall erect or use or cause or allow to be erected or used any building as a warehouse for the purpose of the business of a public wharfinger or warehousekeeper if—

(a) the building has or if erected would have a frontage on the river Thames within the port of London; or

(b) the building is or if erected would be connected or operated in conjunction with any wharf or quay fronting the river Thames within the port of London:

- (2) The following provisions of this Act shall not extend or apply to or with respect to—

PART IX
—cont.

(a) (i) any building premises structure dock wharf quay pier jetty or work of whatsoever nature constructed by or belonging to the port authority in the exercise of their statutory powers; or

(ii) any lands held or acquired by the port authority; so long as such building premises structure dock wharf quay pier jetty work or lands is or are situate within the port of London and is or are used or held by the port authority primarily for port harbour or dock purposes; or

(b) any street or highway constructed and repairable by the port authority on any lands situate within the port of London held or acquired by the port authority primarily for port harbour or dock purposes:—

Section 22 (Adjustment of boundaries of streets);

Section 44 (Powers as to private streets);

Section 106 (Restrictions on use of loudspeakers in streets):

- (3) The highway authority shall not exercise the powers of section 21 (Variation of width of carriageways and footways) of this Act in relation to any street forming the immediate approach to any dock wharf quay pier jetty depot or other work of the port authority except with the consent in writing of the port authority which shall not be unreasonably withheld and any question whether any such consent is unreasonably withheld shall be determined by the Minister of Transport and Civil Aviation.

130. The following provisions for the protection of the Dover Harbour Board (hereafter in this section referred to as "the board") shall unless otherwise agreed in writing between the Council or the highway authority concerned as the case may be and the board apply and have effect:—

For protection
of Dover
Harbour
Board.

- (1) Except with the previous consent in writing of the board neither the Council nor any other person under or by virtue of any provision in Part II (Lands) of this Act or of any enactment incorporated with or applied for the purposes of the said Part II shall erect or use or cause or allow to be erected or used any building as a warehouse for the purpose of the business of a public wharfinger or warehousekeeper if—

(a) the building has or if erected would have a frontage on the port of Dover; or

PART IX
—cont.

(b) the building is or if erected would be within the port of Dover and connected or operated in conjunction with any wharf or quay fronting the port of Dover:

(2) The following provisions of this Act shall not extend or apply to or with respect to—

(a) (i) any building premises structure dock wharf quay pier jetty or work of whatsoever nature constructed by or belonging to the board in the exercise of their statutory powers; or

(ii) any lands held or acquired by the board; so long as such building premises structure dock wharf quay pier jetty work or lands is or are situate within the port of Dover and is or are used or held primarily for port harbour or dock purposes; or

(b) any street or highway on any lands situate within the port of Dover held or acquired by the board primarily for port harbour or dock purposes:—

Section 22 (Adjustment of boundaries of streets);

Section 106 (Restrictions on use of loudspeakers in streets):

(3) The highway authority shall not exercise the powers of section 21 (Variation of width of carriageways and footways) of this Act in relation to any street forming the immediate approach to any dock wharf quay pier jetty depot or other work of the board except with the consent in writing of the board which shall not be unreasonably withheld and any question whether any such consent is unreasonably withheld shall be determined by the Minister of Transport and Civil Aviation.

PART X
GENERAL

Liability of Council for work done in default or by request.

131.—(1) Where under any enactment—

(a) the Council require any person (in this section referred to as “the defaulter”) to execute any work or take any action; and

(b) in default or at the request of the defaulter the Council or any of their officers execute the work or take the action;

then in the absence of negligence on the part of the Council or of any such officer or of any contractor employed by them or him—

(i) the Council shall not as between themselves and the defaulter be liable to pay any damages in respect of or consequent upon the execution of the work or taking of the action; and

(ii) any such damages as aforesaid paid by the Council to any other person shall be deemed to be part of the expenses payable by the defaulter and shall be recoverable accordingly.

PART X
—cont.

(2) In this section the expression “ damages ” includes penalties costs and charges.

132. Where in pursuance of this Act the Council or a local authority give their approval or consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required approval or consent and the provisions of this section shall mutatis mutandis apply to conditions imposed by any highway authority under any provision of this Act.

Breach of
conditions of
consent.

133. Where under the provisions of any enactment the Council shall execute any works of common benefit to two or more buildings belonging to different owners the expenses which under those enactments or any of them are recoverable by the Council from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the Council or in case of dispute by a magistrates' court.

Apportion-
ment of
expenses in
case of joint
owners.

134. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

Damages and
charges to be
settled by
court

135. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 of the Act of 1936.

Compensation
how to be
determined.

136.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act.

Local
inquiries.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry and for that purpose the definition of the expression “ department ” in subsection (8) of that section shall include any Minister of the Crown having functions under this Act as well as the Ministers therein mentioned.

137. In arbitrations under a provision of this Act mentioned in the first column of the following table the reference shall be to a single arbitrator to be appointed by agreement between the

Arbitration.

PART X
—cont.

parties or in default of agreement by the person respectively mentioned in the second column of that table on the application of any party after giving notice in writing to the other party or parties:—

1	2
Provision of Act	Person appointing arbitrator
Subsection (7) of section 26 (Piping etc. of roadside ditches)	The Minister of Transport and Civil Aviation.
Paragraph (a) of subsection (5) of section 59 (Police telephone call boxes and shelters)	The President of the Institution of Civil Engineers.
Subsection (2) of section 73 (Appointment of staff)	The Minister of Housing and Local Government.
Paragraph (10) of section 126 (For protection of certain statutory undertakers)	The President of the Institution of Civil Engineers.

Restriction on
right to
prosecute.

138. Proceedings in respect of an offence created by or under this Act (except section 59 (Police telephone call boxes and shelters) thereof) shall not without the written consent of the Attorney-General be taken by any person other than a party aggrieved or the Council or the local authority as the case may be:

Provided that proceedings in respect of an offence under section 57 (Prohibition on solicitation of school children to sell or exchange articles etc. at schools) shall only be taken by the local authority.

Appeals.

139.—(1) Section 300 of the Act of 1936 shall apply with respect to appeals to a magistrates' court under any enactment in this Act as it applies with respect to appeals to a magistrates' court under any enactment in that Act and sections 301 and 302 of that Act shall apply accordingly.

(2) Where any requirement refusal or other decision of the Council or a highway authority or local authority against which a right of appeal is conferred by this Act—

- (a) involves the execution of any work or the taking of any action; or
- (b) makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of the requirement refusal or decision or to use any premises for any purpose for which they were lawfully used up to that time;

then until the time for appealing has expired or when an appeal is lodged until the appeal is disposed of or withdrawn or fails for want of prosecution—

PART X
—cont.

- (i) no proceedings shall be taken in respect of any failure to execute the work or take the action nor shall the Council highway authority or local authority as the case may be themselves execute the work or take the action; and
- (ii) that person may carry on that business and use those premises for that purpose.

140. Section 265 of the Public Health Act 1875 shall apply to the Council and a local authority as if any reference in that section to the said Act of 1875 included a reference to this Act.

Protection of members and officers from personal liability.

141.—(1) The sections of the Act of 1936 mentioned in Part I of the Fourth Schedule to this Act shall have effect as if references therein to that Act included a reference to this Act.

Application of general provisions of Act of 1936.

(2) The sections of the Act of 1936 mentioned in Part II of the said schedule shall have effect as if references therein to that Act included a reference to Part III (Highways) of this Act and to the following sections of this Act (that is to say):—

Section 62 (Firemen's switches for luminous tube signs);

Section 116 (Prohibition of tuberculous persons from handling food);

Section 119 (Powers as to hop-pickers and persons engaged in similar work).

142. Whenever under any enactment (other than the Act of 1936) the Council on the application or in consequence of the default of the owner or occupier of any premises execute any work the cost of which is payable by such owner or occupier the Council may include in and recover as part of such cost such additional sum as they think fit not exceeding five per centum of the cost of the work in respect of their establishment charges.

Power to charge in respect of establishment expenses.

143.—(1) The provisions of this Part of this Act hereinafter referred to shall apply to a local authority and those provisions shall accordingly have effect with any necessary modifications including the substitution of—

Application of certain provisions of Part X to local authorities.

(a) "local authority" for "Council"; and

(b) "this Act" for "any enactment".

PART X
—cont.

(2) The provisions hereinbefore referred to are the following:—

Section 131 (Liability of Council for work done in default or by request);

Section 133 (Apportionment of expenses in case of joint owners);

Section 142 (Power to charge in respect of establishment expenses).

Saving for
powers of
Treasury.

144. It shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the power of borrowing to pay the costs charges and expenses of this Act) otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Saving for
town and
country
planning.

145. This Act shall be deemed to be an enactment passed before and in force at the passing of the Act of 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Costs of Act.

146. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the county fund or out of moneys to be borrowed under this Act.

SCHEDULES

FIRST SCHEDULE

MODIFICATIONS OF THE LOCAL GOVERNMENT SUPERANNUATION ACTS 1937 TO 1953 AND THE SUPERANNUATION REGULATIONS IN RELATION TO THE COUNTY QUARTER SESSIONS

1. In the Local Government Superannuation Act 1937—

- (1) in subsections (2) and (3) of section 6 and in paragraph (b) of subsection (2) of section 21 references to an employing authority shall be construed as references to the Council and not as references to the court of quarter sessions and subsection (4) of section 6 shall not apply:
- (2) subsection (4) of section 10 shall have effect as if it—
 - (a) required the court of quarter sessions to report to the Council any decision taken by it thereunder; and
 - (b) provided that if the Council are dissatisfied with the decision they may within one month of receiving the report appeal to the Secretary of State whose determination shall be final and that if the Council appeal the decision of the court of quarter sessions shall not be effective until the appeal is determined:
- (3) subsection (6) of section 36 shall have effect as if it provided that regulations thereunder may provide for anything to be done by or to the Council where apart from this provision they could provide for it to be done by or to the court of quarter sessions.

2. In the Local Government Superannuation Act 1953—

- (1) in the proviso to subsection (2) of section 2 the reference to the employing authority shall be construed as a reference to the Council and not as a reference to the court of quarter sessions:
- (2) the said subsection (2) subsection (3) of section 17 and subsection (1) of section 18 shall have effect as if they—
 - (a) required the court of quarter sessions to report to the Council any decision taken by it thereunder; and
 - (b) provided that if the Council are dissatisfied with the decision they may within one month of receiving the report appeal to the Secretary of State whose determination shall be final and that if the Council appeal the decision of the court of quarter sessions shall not be effective until the appeal is determined:
- (3) in proviso (i) to subsection (1) of section 18 there shall be inserted at the end the words "but shall be paid by the Council".

1ST SCH.
—cont.

3. In the Local Government Superannuation (Benefits) Regulations 1954 regulations 7 and 12 shall have effect as if they—

- (a) required the court of quarter sessions to report to the Council any decision taken by it thereunder; and
- (b) provided that if the Council are dissatisfied with the decision they may within one month of receiving the report appeal to the Secretary of State whose determination shall be final and that if the Council appeal the decision of the court of quarter sessions shall not be effective until the appeal is determined.

SECOND SCHEDULE

PROVISIONS AS TO BONDS

1. Bonds shall be issued in such amounts in denominations of five pounds and multiples of five pounds and for such periods as the Council may determine.

2. (a) Bonds may be issued at such price and at such rates of interest as the Council may from time to time determine:

Provided that bonds shall not be issued at a price lower than par except with the consent of the Minister.

(b) The nominal amount of bonds issued shall not exceed in the aggregate according to the price of issue such amounts as will together produce the actual amount of money for the time being authorised to be borrowed by the Council.

(c) Where a bond has been issued at a price lower than par so much of the issue as represents the difference between the price of the bond as issued and its nominal value shall be treated as a loan authorised by a statutory borrowing power and repayable out of the revenues of the Council on or before the date for repayment specified in the certificate issued in respect of the bond.

3. Bonds shall be repayable at par (unless the same shall have been previously cancelled by purchase in the open market or by agreement with the bondholder) at the place and on the date specified in the certificates issued in respect of the bonds and no interest shall be payable thereon in respect of any period after the date upon which the bond is repayable.

4.—(1) The treasurer of the Council shall keep a register of all persons who are holders for the time being of bonds.

(2) The register shall contain the following particulars:—

- (a) the name and address and description of each holder a statement of the denomination of the bonds held by him the price at which and the periods for which they are issued and the numbers and dates of the certificates issued to him as hereinafter provided;
- (b) the date of registration of each holder and the date on which he ceased to be so registered.

(3) The register shall be prima facie evidence of any matter entered therein in accordance with the provisions of this Act and of the title of the persons entered therein as holders of bonds.

5.—(1) The Council shall issue to each holder of a bond a certificate in respect thereof duly numbered and dated and specifying the denomination of the bond and the period for which it is issued.

2ND SCH.
—cont.

(2) If a certificate is worn out or damaged the Council on the production thereof may cancel it and issue a new certificate in lieu thereof.

(3) If a certificate is lost or destroyed the Council on proof thereof to their satisfaction and if they so require on receiving an indemnity against any claims in respect thereof may give a new certificate in lieu of the certificate lost or destroyed.

(4) An entry of the issue of a substituted certificate shall be made in the register.

(5) A certificate shall be in the following form or in a form substantially to the like effect:—

No. _____
Date _____
_____ per centum _____ bond
repayable at par on the _____ 19_____
at _____

This is to certify that
of

is the registered holder of a bond for
pounds (£) issued by the county council of the
administrative county of Kent under the Kent County
Council Act 1958 at

The seal of the county council of the administrative county of Kent was hereunto affixed in the presence of

Clerk.

6. The certificate shall be prima facie evidence of the title of the person therein named his executors administrators or assigns to the bond therein specified but the want of a certificate if accounted for to the satisfaction of the Council shall not prevent the holder of the bond from disposing of and transferring the bond.

7.—(1) The transfer of a bond shall be by deed in the following form or in a form substantially to the like effect:—

FORM OF DEED OF TRANSFER

I in consideration of the sum of
paid by
(hereinafter called "the transferee") do hereby assign and
transfer to the transferee.....

To hold unto the transferee his executors administrators and assigns subject to the several conditions on which I held the same immediately before the execution hereof

And I the transferee do hereby agree to accept and take the said
subject to the conditions
 aforesaid.

As witness our hands and seals this day of
 nineteen hundred and .

2ND SCH.
—cont.

(2) A bond may be transferred in whole or in part so however that any part transferred shall not be for an amount other than an amount for which a bond may be issued by the Council.

(3) The deed of transfer shall be delivered to and retained by the Council and the Council shall enter a note thereof in a book to be called the "Register of transfers of bonds" and shall endorse on the deed of transfer a notice of that entry.

(4) The Council shall upon receipt of the deed of transfer duly executed and properly stamped together with the certificate issued in respect of the bond enter the name of the transferee in the register and shall issue a new certificate or certificates to the transferee or to the transferor and transferee as the case may require.

(5) Until the deed of transfer and the certificate have been delivered to the Council as aforesaid the Council shall not be affected by the transfer and the transferee shall not be entitled to receive any payment of interest on the bond.

(6) The Council before registering a transfer of a bond may if they think fit require evidence by statutory declaration or otherwise of the title of any person claiming to make the transfer.

8. The Council may close the register for a period not exceeding thirty days immediately before the date for the payment of any interest on the bonds and notwithstanding the receipt by the Council during those periods of any deed of transfer the payment of interest next falling due may be made to the persons registered as holders of the bonds on the date of the closing of the register.

9.—(1) Any person becoming entitled to a bond by reason of the death or bankruptcy of a holder or by any lawful means other than a transfer may by the production of such evidence of title as the Council may require either be registered as holder of the bond or instead of being himself registered may make such transfer of the bond as the holder could have made and the Council shall issue a certificate accordingly.

(2) Until such evidence as aforesaid has been furnished to the Council they shall not be affected by the transmission of the bond and no person claiming by virtue thereof shall be entitled to receive any payment of interest thereon.

(3) Where two or more persons are registered as holders of a bond they shall be deemed to be joint holders with right of survivorship between them.

10. The Council before paying any interest on any bonds may if they think fit require evidence by statutory declaration or otherwise of the title of any person claiming a right to receive the interest.

11.—(1) Unless the holder of a bond otherwise requests the Council may pay the interest thereon by posting a warrant to the holder at his address as shown on the register.

(2) The posting by the Council of an interest warrant addressed to a holder as aforesaid shall as respects the liability of the Council be equivalent to the delivery of the warrant to the holder himself.

12. The production to the Council of any document which is by law sufficient evidence of probate of the will or letters of administration

of the estate or confirmation as executor of a deceased person having been granted to some person shall notwithstanding anything in this schedule be accepted by the Council as sufficient evidence of the grant.

2ND SCH.
—cont.

THIRD SCHEDULE

DESCRIPTION OF SPECIFIED PLOTS

BOROUGH OF NEW ROMNEY

- 1. A piece of land on the landward side of Grand Parade Littlestone having a frontage thereto of forty feet or thereabouts and a depth therefrom of eighty feet or thereabouts bounded on both sides by vacant plots of land and containing three hundred and fifty-five square yards or thereabouts (May nineteen hundred and thirty-two).
- 2. A piece of land on the south side of Madeira Road Littlestone having a frontage thereto of sixty feet or thereabouts and a depth therefrom of eighty feet or thereabouts bounded on the west by the property known as White Inch and on the east by a vacant plot of land and containing five hundred and thirty-three square yards or thereabouts (May nineteen hundred and thirty-two).
- 3. A piece of land on the north side of Warren Road Littlestone having a frontage thereto of eighty-five feet or thereabouts and a depth therefrom of one hundred and fifty feet or thereabouts and bounded on the west by the property known as Binns Garage and on the east by a vacant plot of land and containing one thousand four hundred and seventeen square yards or thereabouts (March nineteen hundred and thirty-three).
- 4. A piece of land on the north side of Warren Road Littlestone having a frontage thereto of thirty-one feet or thereabouts and a depth therefrom of one hundred and fifty feet or thereabouts and bounded on the west by a vacant plot of land and on the east by the property known as No. 1 Warren Road and containing five hundred and seventeen square yards or thereabouts (March nineteen hundred and thirty-three).

FOURTH SCHEDULE

SECTIONS OF PUBLIC HEALTH ACT 1936 APPLIED

PART I

SECTIONS APPLIED GENERALLY

Section	Marginal note
271	Interpretation of " provide ".
283	Notices to be in writing; forms of notices etc.
284	Authentication of documents.
285	Service of notices etc.
288	Penalty for obstructing execution of Act.
296	Summary proceedings for offences.
297	Continuing offences and penalties.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.

4TH SCH.
—cont.

PART II

SECTIONS APPLIED TO PART III AND SECTIONS 62 116 AND 119 OF THIS ACT

Section	Marginal note
275	Power of local authority to execute certain work on behalf of owners or occupiers.
276	Power of local authority to sell certain materials.
277	Power of councils to require information as to ownership of premises.
287	Power to enter premises.
289	Power to require occupier to permit works to be executed by owner.
291	Certain expenses recoverable from owners to be a charge on the premises: Power to order payment by instalments.
292	Power to make a charge in respect of establishment expenses.
293	Recovery of expenses etc.
294	Limitation of liability of certain owners.
295	Power of local authority to grant charging orders.
299	Inclusion of several sums in one complaint etc.
329	Saving for certain provisions of the Land Charges Act 1925.

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Table of Statutes referred to in this Act

Short title	Session and chapter
Small Tenements Recovery Act 1838 ...	1 & 2 Vict. c. 74.
Theatres Act 1843	6 & 7 Vict. c. 68.
Lands Clauses Consolidation Act 1845 ...	8 & 9 Vict. c. 18.
Towns Improvement Clauses Act 1847 ...	10 & 11 Vict. c. 34.
Telegraph Act 1869	32 & 33 Vict. c. 73.
Public Health Act 1875	38 & 39 Vict. c. 55.
Local Loans Act 1875	38 & 39 Vict. c. 83.
Telegraph Act 1878	41 & 42 Vict. c. 76.
Summary Jurisdiction Act 1879	42 & 43 Vict. c. 49.
Electric Lighting Act 1882... ..	45 & 46 Vict. c. 56.
Bills of Exchange Act 1882	45 & 46 Vict. c. 61.
Local Government Act 1888	51 & 52 Vict. c. 41.
Public Health (Buildings in Streets) Act 1888	51 & 52 Vict. c. 52.
Lunacy Act 1890	53 Vict. c. 5.
Public Health Acts Amendment Act 1890	53 & 54 Vict. c. 59.
Stamp Act 1891	54 & 55 Vict. c. 39.
Private Street Works Act 1892	55 & 56 Vict. c. 57.
Finance Act 1899	62 & 63 Vict. c. 9.
Hythe Corporation Act 1905	5 Edw. 7 c. xcvi.
Open Spaces Act 1906	6 Edw. 7 c. 25.
Public Health Acts Amendment Act 1907	7 Edw. 7 c. 53.
Cinematograph Act 1909	9 Edw. 7 c. 30.
Acquisition of Land (Assessment of Compensation) Act 1919	9 & 10 Geo. 5 c. 57.
Port of London (Consolidation) Act 1920	10 & 11 Geo. 5 c. clxxiii.
Trustee Act 1925	15 Geo. 5 c. 19.
Law of Property Act 1925	15 Geo. 5 c. 20.
Land Charges Act 1925	15 & 16 Geo. 5 c. 22.
Roads Improvement Act 1925	15 & 16 Geo. 5 c. 68.
Public Health Act 1925	15 & 16 Geo. 5 c. 71.
Rating and Valuation Act 1925	15 & 16 Geo. 5 c. 90.
Home Counties (Music and Dancing) Licensing Act 1926	16 & 17 Geo. 5 c. 31.
Local Government Act 1929	19 & 20 Geo. 5 c. 17.
Road Traffic Act 1930	20 & 21 Geo. 5 c. 43.
Local Government (Clerks) Act 1931 ...	21 & 22 Geo. 5 c. 45.
Port of London (Various Powers) Act 1932	22 & 23 Geo. 5 c. xxxviii.
Children and Young Persons Act 1933 ...	23 & 24 Geo. 5 c. 12.
Local Government Act 1933	23 & 24 Geo. 5 c. 51.
Public Health Act 1936	26 Geo. 5 & 1 Edw. 8 c. 49.
Trunk Roads Act 1936	1 Edw. 8 & 1 Geo. 6 c. 5.
Local Government Superannuation Act 1937	1 Edw. 8 & 1 Geo. 6 c. 68.
London Passenger Transport Act 1938 ...	2 & 3 Geo. 6 c. lxxxix.
Pensions (Increase) Act 1944	7 & 8 Geo. 6 c. 21.
Education Act 1944	7 & 8 Geo. 6 c. 31.
Trunk Roads Act 1946	9 & 10 Geo. 6 c. 30.
Ministers of the Crown (Transfer of Functions) Act 1946	9 & 10 Geo. 6 c. 31.
Police Act 1946	9 & 10 Geo. 6 c. 46.
Borrowing (Control and Guarantees) Act 1946	9 & 10 Geo. 6 c. 58.
Coal Industry Nationalisation Act 1946 ...	9 & 10 Geo. 6 c. 59.

Short title	Session and chapter
Pensions (Increase) Act 1947	10 & 11 Geo. 6 c. 7.
Fire Services Act 1947	10 & 11 Geo. 6 c. 41.
Town and Country Planning Act 1947 ...	10 & 11 Geo. 6 c. 51.
Local Government Act 1948	11 & 12 Geo. 6 c. 26.
National Assistance Act 1948	11 & 12 Geo. 6 c. 29.
Children Act 1948	11 & 12 Geo. 6 c. 43.
Lands Tribunal Act 1949	12 & 13 Geo. 6 c. 42.
Coast Protection Act 1949	12 & 13 Geo. 6 c. 74.
National Parks and Access to the Countryside Act 1949	12 13 & 14 Geo. 6 c. 97.
Port of London Act 1950	14 Geo. 6 c. xxiii.
Public Utilities Street Works Act 1950 ...	14 Geo. 6 c. 39.
Pensions (Increase) Act 1952	15 & 16 Geo. 6 & 1 Eliz. 2 c. 45.
Magistrates' Courts Act 1952	15 & 16 Geo. 6 & 1 Eliz. 2 c. 55.
Cinematograph Act 1952	15 & 16 Geo. 6 & 1 Eliz. 2 c. 68.
Local Government Superannuation Act 1953	1 & 2 Eliz. 2 c. 25.
Local Government (Miscellaneous Provisions) Act 1953	1 & 2 Eliz. 2 c. 26.
Dover Harbour Consolidation Act 1954 ...	2 & 3 Eliz. 2 c. iv.
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Local Authorities (Expenses) Act 1956 ...	4 & 5 Eliz. 2 c. 36.
Pensions (Increase) Act 1956	4 & 5 Eliz. 2 c. 39.
Road Traffic Act 1956	4 & 5 Eliz. 2 c. 67.
Housing Act 1957	5 & 6 Eliz. 2 c. 56.
Coal-Mining (Subsidence) Act 1957 ...	5 & 6 Eliz. 2 c. 59.
Housing (Financial Provisions) Act 1958	6 & 7 Eliz. 2 c. 42.

PRINTED BY THE SOLICITORS' LAW STATIONERY SOCIETY, LTD., FOR
SIR JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 4s. 6d. net

PRINTED IN GREAT BRITAIN